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Washington, Saturday, January 7, 1939

The President

ENLARGING THE HIAWATHA NATIONAL FOREST—MICHIGAN

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA

A PROCLAMATION

WHEREAS certain lands adjacent to the Hiawatha National Forest within the State of Michigan have been acquired or are in process of acquisition by the United States under authority of the act of March 1, 1911, c. 186, 36 Stat. 962 (U. S. C., title 16, sec. 516), as amended by the act of June 7, 1924, 43 Stat. 653 (U. S. C., title 16, sec. 515), the act of March 31, 1933, c. 348, 48 Stat. 22 (U. S. C., title 16, sec. 585), section 5 of the act of March 3, 1925, 43 Stat. 1132, 1133 (U. S. C., title 16, sec. 555), the National Industrial Recovery Act, approved June 16, 1933 (48 Stat. 202, U. S. C., title 40, sec. 403), and the Emergency Relief Appropriation Act of 1935, approved April 8, 1935 (49 Stat. 115); and

WHEREAS it appears that the said lands and certain intermingled public lands are suitable for national-forest purposes, and that it would be in the public interest to reserve them as part of the said Hiawatha National Forest:

NOW, THEREFORE, I, FRANKLIN D. ROOSEVELT, President of the United States of America, under and by virtue of the power vested in me by section 24 of the act of March 3, 1891, 26 Stat. 1095, 1103 (U. S. C., title 16, sec. 471), the act of June 4, 1897, 30 Stat. 34, 36 (U. S. C., title 16, sec. 473), and the acts above mentioned, do proclaim (1) that all lands of the United States within the following-described boundaries, as shown on the diagram attached hereto and made a part hereof,[1] are hereby included in and reserved as part of the Hiawatha National Forest in the State of Michigan; and (2) that all lands within such boundaries which are now in process of acquisition by the United States under authority of any of the above-mentioned acts shall upon the acquisition of title thereto become and be administered as part of the said Forest:

MICHIGAN PRINCIPAL MERIDIAN

T. 38 N., R. 21 W., all that part lying north and west of Big Bay De Noc, Lake Michigan.
T. 38 N., R. 22 W., all that part lying east of Little Bay De Noc, Lake Michigan.
T. 39 N., R. 20 W., all that part lying north and west of Big Bay De Noc, Lake Michigan.
T. 39 N., R. 21 W., all.
T. 39 N., R. 22 W., all that part lying east of Little Bay De Noc, Lake Michigan.
T. 40 N., R. 19 W., all that part lying north of Big Bay De Noc, Lake Michigan.
T. 40 N., R. 20 W., all that part lying north and west of Big Bay De Noc, Lake Michigan.
T. 40 N., R. 21 W., all.
T. 40 N., R. 22 W., all that part lying east of Little Bay De Noc, Lake Michigan, and sec. 2; N½ and SW¼ sec. 3; secs. 4, 5, 8; N½ and SW¼ sec. 9.
Tps. 41 N., Rs. 17, 18, 19, 20 and 21 W., all.
T. 41 N., R. 22 W., secs. 1 to 3, inclusive; secs. 10 to 15, inclusive; secs. 22 to 27, inclusive; secs. 34 to 36, inclusive.
Tps. 42 N., Rs. 17, 18, 19, 20 and 21 W., all.
T. 42 N., R. 22 W., secs. 1 to 3, inclusive; secs. 10 to 15, inclusive; secs. 22 to 27, inclusive; secs. 34 to 36, inclusive.
Tps. 43 N., Rs. 21 and 22 W., all.
T. 44 N., R. 21 W., secs. 1 to 3, inclusive; secs. 10 to 15, inclusive; secs. 22 to 27, inclusive; secs. 34 to 36, inclusive.
T. 45 N., R. 17 W., secs. 1 to 12, inclusive.
T. 45 N., R. 18 W., secs. 1, 2, 11 and 12.
T. 45 N., R. 21 W., secs. 1 to 3, inclusive; secs. 10 to 15, inclusive; secs. 22 to 27, inclusive; secs. 34 to 36, inclusive.
T. 45 N., R. 23 W., N½ sec. 2.
T. 46 N., R. 18 W., secs. 1 to 26, inclusive; secs. 35 and 36.
T. 46 N., R. 19 W., secs. 1 to 24, inclusive.
T. 46 N., R. 20 W., all.
T. 46 N., R. 21 W., secs. 1 to 18, inclusive; E½ sec. 20; secs. 21 to 25, inclusive; N½N½ sec. 26; N½N½ sec. 27; N½NE¼ sec. 28; sec. 36.
T. 46 N., R. 23 W., secs. 11 to 15, inclusive; secs. 21 to 29, inclusive; secs. 33, 34, and 35.
T. 47 N., R. 18 W., all that part lying south and east of Lake Superior.
T. 47 N., R. 19 W., all that part lying south of Lake Superior.
T. 47 N., R. 20 W., all that part lying south of Lake Superior.
T. 47 N., R. 21 W., all that part lying south and west of Lake Superior.
T. 48 N., R. 18 W., all that part lying south and east of Lake Superior.
T. 48 N., R. 21 W., all that part lying south and west of Lake Superior.

The Executive Order of June 4, 1856, withdrawing public land for lighthouse purposes, is hereby revoked. Executive Order No. 4430 of April 23, 1926, and Ex-

[1] See page 76.

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FEDERAL REGISTER

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ecutive Order No. 6964 of February 5, 1935, as amended, withdrawing public lands for classification, are hereby revoked in so far as they affect any of the above-described lands.

IN WITNESS WHEREOF I have hereunto set my hand and caused the seal of the United States to be affixed.

DONE at the City of Washington, this third day of January in the year of our Lord nineteen hundred and thirty-nine, and of the Independence of the [SEAL] United States of America the one hundred and sixty-third.

FRANKLIN D ROOSEVELT

By the President:

SUMNER WELLES
Acting Secretary of State.

[No. 2318]

[F. R. Doc. 39-73; Filed, January 5, 1939; 12:22 p. m.]

Rules, Regulations, Orders

TITLE 12—BANKS AND BANKING

FEDERAL DEPOSIT INSURANCE CORPORATION

RESOLUTION REQUIRING REPORT OF CONDITION AND ANNUAL REPORT OF EARNINGS AND DIVIDENDS

Paragraph (3) of subsection (k) of Section 12B of the Federal Reserve Act, as amended, provides as follows:

Each insured State nonmember bank (except a District bank) shall make to the Corporation reports of condition in such form and at such times as the board of directors may require. The board of directors may require such reports to be published in such manner, not inconsistent with any applicable law, as it may direct. Every such bank which fails to make or publish any such report within such time, not less than five days, as the board of directors may require, shall be subject to a penalty of not more than $100 for each day of such failure recoverable by the Corporation for its use.

Pursuant to the provisions of paragraph (3) of subsection (k) of Section 12B of the Federal Reserve Act, as amended, be it resolved that each insured State nonmember bank, except a District bank, be, and hereby is, required to submit to the Federal Deposit Insurance Corporation within ten days after receipt of notice of this resolution a report of its condition as of the close of business Saturday, December 31, 1938, on Form 64—Call No. 10, and a report of earnings and dividends for the year ending December 31, 1938 on Form 73. Said report of condition shall be prepared in accordance with the revised booklet entitled "Instructions for the Preparation of Reports of Condition on Form 64", and said annual report of earnings and dividends shall be prepared in accordance with the instruction booklet issued as of December, 1937.

Adopted by the Board of Directors of the Federal Deposit Insurance Corporation on January 4, 1939.

[SEAL] E. F. DOWNEY,
Acting Secretary.

[F. R. Doc. 39-83; Filed, January 6, 1939; 11:29 a. m.]

TITLE 26—INTERNAL REVENUE

BUREAU OF INTERNAL REVENUE

[T. D. 4878]

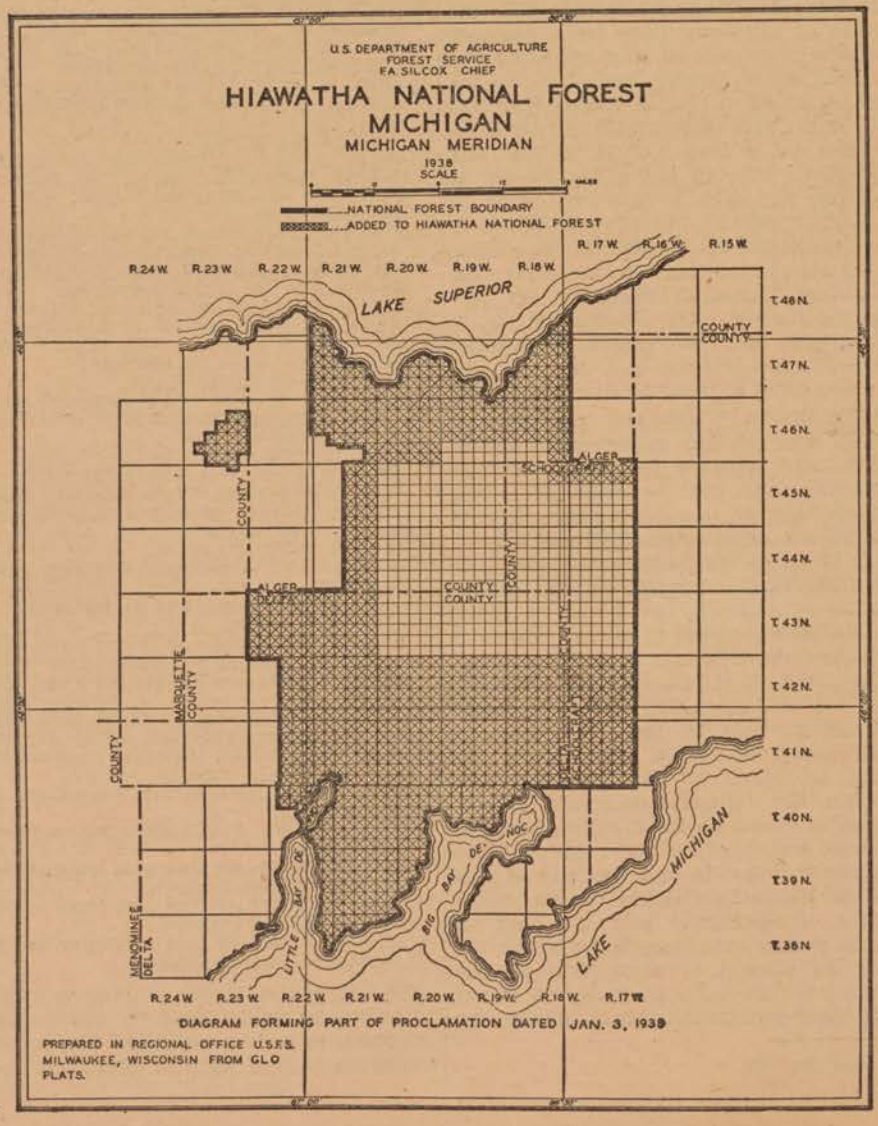
INCOME, EXCESS-PROFITS, CAPITAL STOCK, ESTATE, GIFT TAX RETURNS; RETURNS MADE UNDER TITLE III OF THE REVENUE ACT OF 1936; AND RETURNS MADE UNDER TITLE IX OF THE SOCIAL SECURITY ACT

USE OF ORIGINAL RETURNS OPEN TO INSPECTION; FURNISHING OF COPIES OF RETURNS; INSPECTION OF RETURNS OF CORPORATIONS BY STATE OFFICERS AND SHAREHOLDERS; AND INSPECTION OF ESTATE AND GIFT TAX RETURNS

Collectors of Internal Revenue and Others Concerned:

By Executive Order date November 12, 1938,[1] the President ordered that income, excess-profits, and capital stock tax returns, estate and gift tax returns made under the Revenue Act of 1932 and filed after June 16, 1933, and returns made under Title IX of the Social Security Act, shall be open to inspection in accordance and upon compliance with the

[1] 3 F. R. 2679 DI.



rules and regulations promulgated in Treasury Decision 4873 [2] approved by the President on the same date. That Treasury Decision deals with the inspection of returns in so far as inspection is permissible only upon order of the President and under regulations approved by the President. Under authority of law, and without action by the President, returns of corporations, except income and excess-profits tax returns and returns for the purpose of surtax on personal holding companies for years beginning after December 31, 1934, are open to inspection by the proper officers of any State; all returns of corporations are open to inspection by bona fide shareholders of record owning one per cent or more of the outstanding stock; and all returns under Title III of the Revenue Act of 1936 (or copies thereof) are open to inspection by any official, body, or commission, lawfully charged with the administration of any State tax law, if the inspection is for the purpose of such administration or for the purpose of obtaining information to be furnished to local taxing authorities.

Pursuant to sections 62, 409, 601 (e), and 602 (c) of the Revenue Act of 1938, sections 62, 351 (c), and 503 (a) of the Revenue Act of 1936, sections 105 (d) and 106 (c) of the Revenue Act of 1935, sections 62, 351 (c), 701 (d), and 702 (b) of the Revenue Act of 1934, sections 62, 403, and 630 of the Revenue Act of 1932, section 62 of the Revenue Act of 1928, sections 257 and 1101 of the Revenue Act of 1926, section 905 (c) of the Social Security Act, and sections 215 (e) and 216 (b) of the National Industrial Recovery Act, the following regulations are hereby prescribed with respect to the use of original, and the furnishing of copies of, returns open to inspection in accordance with Treasury Decision 4873, or otherwise; with respect to examinations by shareholders of the returns of corporations; by State officers of returns of corporations made under the income, capital stock, or excess-profits tax provisions of the Revenue Act of 1926, the Revenue Act of 1928, the Revenue Act of 1932, sections 215 and 216 of the National Industrial Recovery Act, the Revenue Act of 1934, the Revenue Act of 1935, the Revenue Act of 1936, the Revenue Act of 1938, and under Title IX of the Social Security Act, except income and excess-profits tax returns and returns for the purpose of surtax on personal holding companies for years beginning after December 31, 1934; with respect to the inspection of returns under Title III of the Revenue Act of 1936 by any official, body, or commission, lawfully charged with the administration of any State tax law; and with respect to the inspection of estate and gift tax returns made under the Revenue Act of 1932 and filed prior to June 17, 1933, and made under the Revenue Act of 1926 and under prior Revenue Acts. For inspection by State taxing officials of income returns other than returns under Title III of the Revenue Act of 1936, for any taxable year beginning after December 31, 1934, see articles 55 (b)–1 to 55 (b)–4, inclusive, of Regulations 86, as substituted by Treasury Decision 4626, C. B. XV–1, p. 61, 71, and articles 55 (b)–1 to 55 (b)–4, inclusive, of Regulations 94, both as amended by Treasury Decision 4732,[3] C. B. 1937–1, p. 145, and section 55 of the Revenue Act of 1938.

[2] 3 F. R. 2689 DI.

Part I.—Income and Excess-Profits Tax Returns, Except Returns Under Title III of the Revenue Act of 1936, Capital Stock Tax Returns, and Returns Under Title IX of the Social Security Act

ARTICLE 1. *Definitions.*—When used in Part I of these regulations—

(*a*) the term "return" means the original return (except a return under Title III of the Revenue Act of 1936) made for income, excess-profits, or capital stock tax purposes, or for purposes of the tax imposed by Title IX of the Social Security Act;

(*b*) the term "corporation" includes associations, joint-stock companies, and insurance companies;

(*c*) the term "partnership" includes a syndicate, group, pool, joint venture, or other unincorporated organization, through or by means of which any business, financial operation, or venture is carried on, and which is not, within the meaning of the Federal tax laws, a trust or estate or a corporation;

(*d*) the terms "stock" includes shares in an association, joint-stock company, or insurance company; and the term "shareholder" includes a member in an association, joint-stock company, or insurance company.

ART. 2. *Access to returns by State officers.*—(1) The proper officers of a State are entitled as of right upon the request of its governor to have access to the returns of a corporation or to an abstract thereof, showing its name and income.

(2) The request or application of the governor must be in writing, signed by him under the seal of his State, and must show why access is desired, and the names and official positions of the officers designated to have the access. The request or application should be addressed to the Commissioner, who will set a convenient time and place for the access to the returns (or to an abstract thereof as he may determine).

(3) Access shall be given only in the office of the Commissioner, unless such returns are in the custody of a collector of internal revenue or internal revenue agent in charge, in which event the return may be inspected in the office of such collector or agent, but only in the presence of an internal revenue officer designated by the collector or agent for that purpose.

ART. 3. *Examination of returns by shareholder.*—A bona fide shareholder of record owning one per cent or more of the outstanding stock of a corporation shall be entitled as of right, upon making request of the Commissioner, to examine the returns of such corporation and of its subsidiaries. His request for permission to examine such returns must be made in writing, verified by affidavit, and shall show his address, the name of the corporation, the period of time covered by the return he desires to inspect, the amount of the corporation's outstanding capital stock, the number of shares owned by him, the date when he acquired them, and whether he has the beneficial as well as the record title to such shares. It shall also show that he has not acquired his shares for the purpose of the examination of the returns of the corporation. If he has acquired them for such purpose, he is not a bona fide shareholder within the meaning of the statute. The application shall be supported by satisfactory evidence showing that the applicant is a bona fide shareholder of record of the required amount of stock of the corporation. The supporting evidence may be in the form of a certificate signed by the president or vice president of the corporation and countersigned by the secretary under the corporate seal. Upon being satisfied from the evidence presented that the applicant has fully met these conditions, the Commissioner will grant the permission to examine the returns and set a convenient time and place for the examination. This privilege is personal and will be granted only to the shareholder, who cannot delegate it to another. In the case of a corporation which has been dissolved, the returns may be examined by any person who would have been entitled to examine them at the date of dissolution.

ART. 4. *Penalties for disclosure of returns.*—Section 3167, Revised Statutes, as amended by the Revenue Act of 1918 and reenacted without change by section 1115 of the Revenue Act of 1926, makes it a misdemeanor punishable by a fine not exceeding $1,000.00 or by imprisonment not exceeding one year, or both, at the discretion of the court, for any person to print or publish in any manner whatever not provided by law information contained in any income return, and further provides that if the offender be an officer or employee of the United States he shall be dismissed from office or discharged from employment. The penalties provided in section 3167, Revised Statutes, are applicable also to disclosure of information contained in excess-profits and capital stock tax returns and returns made under Title IX of the Social Security Act.

[3] 2 F. R. 646 (763 DI).

Part II.—Returns Under Title III of the Revenue Act of 1936

ARTICLE 1. *Inspection of returns by State taxing officials.*—Original returns of taxes imposed by Title III shall be open to inspection, at convenient times and places, by any official, body, or com-

mission lawfully charged with the administration of any State tax law, or by the representatives of such official, body, or commission designated in writing by the governor of the State, for the purpose of such administration, or for the purpose of obtaining information to be furnished to local taxing authorities, as provided in section 55 (b) (1) and (2) of the Revenue Act of 1936. Requests for permission to inspect the returns must be in writing signed by the governor under the seal of his State, and must be addressed to the Commissioner of Internal Revenue, Records Division, Washington, D. C. The request shall state (*a*) the kind of returns it is desired to inspect, (*b*) the taxable year or years covered by the returns it is desired to inspect, (*c*) the name of the official, body, or commission by whom or which the inspection is to be made, (*d*) the name of the representative of such official, body, or commission, designated to make the inspection, (*e*) by specific references, the State tax law which such official, body, or commission is charged with administering and the law under which he, she, or it is so charged, (*f*) the purpose for which the inspection is to be made, and (*g*) if the inspection is for the purpose of obtaining information to be furnished to local taxing authorities, (1) the name of the official, body, or commission of any political subdivision of the State, lawfully charged with the administration of the tax laws of such political subdivision, if any, to whom, or to which the information secured by the inspection is to be furnished, and (2) the purpose for which the information is to be used by such official, body, or commission.

ART. 2. *Examination of returns by shareholder.*—A bona fide shareholder of record owning one per cent or more of the outstanding stock of a corporation shall be entitled as of right, upon making request of the Commissioner, to examine the returns of such corporation and of its subsidiaries. His request for permission to examine such returns shall be made in writing, verified by affidavit, and shall show his address, the name of the corporation, the period of time covered by the return he desires to inspect, the amount of the corporation's outstanding capital stock, the number of shares owned by him, the date when he acquired them, and whether he has the beneficial as well as the record title to such shares. It shall also show that he has not acquired his shares for the purpose of the examination of the returns of the corporation. If he has acquired them for such purpose, he is not a bona fide shareholder within the meaning of the statute. The application shall be supported by satisfactory evidence showing that the applicant is a bona fide shareholder of record of the required amount of stock of the corporation. The supporting evidence may be in the form of a certificate signed by the president or vice president of the corporation and countersigned by the secretary under the corporate seal. Upon being satisfied from the evidence presented that the applicant has fully met these conditions, the Commissioner will grant the permission to examine the returns and set a convenient time and place for the examination. This privilege is personal and will be granted only to the shareholder, who cannot delegate it to another. In the case of a corporation which has been dissolved, the returns may be examined by any person who would have been entitled to examine them at the date of dissolution.

Part III.—Estate and Gift Tax Returns Filed on or Before June 16, 1933

Estate tax returns and notices, and gift tax returns, shall be treated as privileged communications and shall not be inspected nor their contents disclosed, except as follows:

ARTICLE 1. *Inspection by executor or donor.*—Upon application to the Commissioner an estate tax return or notice may be inspected by the executor, or his successor in office, or by his duly authorized attorney in fact. Upon like application a gift tax return may be inspected by the donor or by his duly authorized attorney in fact.

ART. 2. *Disclosure of information by revenue officer.*—An internal revenue officer engaged in an official investigation of an estate tax or gift tax liability may disclose the returned value of any item or the amount of any specific deduction or other limited information, if such disclosure is necessary in order to verify the same or to arrive at a correct determination of the tax. This right of disclosure, however, is limited to the purposes of the investigation, and in no case extends to such information as the amount of the estate, the amount of tax, or other general data.

ART. 3. *Inspection by State officers.*—Upon written application to the Commissioner, a return or notice may be exhibited, or information contained therein may be disclosed, to an officer of any State, for official use in connection with an estate, inheritance, legacy, succession, gift, or other tax of the State, provided a like cooperation is given by the State to the Commissioner of Internal Revenue or his representatives for use in the administration of the Federal tax laws. Such officer may also be permitted to inspect schedules, lists, and other statements designed to be supplemental to, or to become a part of, the original return, and other records and reports which contain information included or required by statute to be included in the return.

ART. 4. *Inspection by person having material interest.*—If any other person has a material interest in ascertaining any fact disclosed by the return, or in obtaining information as to the payment of the tax, he may make a written application to the Commissioner of Internal Revenue for such information, setting forth the nature of his interest and the purpose of the application. Thereupon, the Commissioner may permit an inspection of, or furnish a copy of, the return, or may furnish such information as he deems advisable.

ART. 5. *Inspection by Government attorneys.*—Returns shall be open to inspection by a United States Attorney or by an attorney of the Department of Justice in the course of his official duties. The request for inspection shall be in writing and, except as provided in article 6, shall be addressed to the Commissioner, and shall state the purpose for which inspection is desired. It may be signed by the Attorney General, the Assistant to the Attorney General, an Assistant Attorney General, or a United States Attorney.

ART. 6. *Returns in custody of collector or revenue agent in charge.*—If the return is in the custody of a collector or internal revenue agent in charge, such collector or agent in charge may, upon like written request made to him, permit inspection thereof by a United States Attorney or an attorney of the Department of Justice. Upon written application to him such collector or agent in charge may also permit inspection by the executor or his successor in office, or his duly authorized attorney in fact, in case of estate tax returns, or the donor or his duly authorized attorney in fact in case of gift tax returns, in accordance with these regulations.

Part IV.—General Provisions

ARTICLE 1. *Use of returns in litigation.*—The return of an individual, partnership, corporation, or fiduciary, or a copy thereof, may be furnished to a United States Attorney for official use in proceedings before a United States grand jury or in litigation in any court, if the United States is interested in the result, or for use in preparation for such proceedings or litigation; or to an attorney of the Department of Justice, for like use, upon written request of the Attorney General, the Assistant to the Attorney General, or an Assistant Attorney General. If a return or copy is thus furnished, it shall be limited in use to the purpose for which it is furnished and is under no condition to be made public except to the extent that publicity necessarily results from such use. The original return will be furnished only in exceptional cases, and then only if it is made to appear that the ends of justice may otherwise be defeated. Neither the original nor a copy of a return desired for use in litigation in court will be furnished if the United States Government is not interested in the result, but this provision is not a limitation on the use of copies of returns by the persons entitled thereto.

ART. 2. *Furnishing of copies of returns.*—A copy of a return may be furnished to any person who is entitled to

inspect such return upon written application therefor and the submission of evidence satisfactory to the Commissioner of his right to receive the same, except that if a return is in the custody of a collector or of an internal revenue agent in charge, such collector or agent in charge may furnish a copy of such return to a United States Attorney, or an attorney of the Department of Justice, or to the taxpayer or his duly authorized attorney in fact, in accordance with these regulations. Certified copies will be furnished only upon specific request therefor sent to the Commissioner at Washington.

The Commissioner may prescribe a reasonable fee for furnishing copies of returns.

ART. 3. *Supplemental documents, records and reports.*—Persons entitled to inspect returns may have access to information returns, schedules, lists, and other statements designed to be supplemental to, or to become a part of, the returns to which they are given access, and the Commissioner may, in his discretion, permit such persons to inspect other records and reports which contain information included or required by statute to be included in the return.

ART. 4. This Treasury Decision supersedes Treasury Decision 4798, approved March 25, 1938.[4]

[SEAL] GUY T. HELVERING,
Commissioner of Internal Revenue.

Approved, January 4, 1939.

JOHN W. HANES,
Acting Secretary of the Treasury.

[F. R. Doc. 39-84; Filed, January 6, 1939; 12:17 p. m.]

[T. D. 4879]

ARTICLE 22 (A)-1 OF REGULATIONS 94 AND 86, RELATING TO ITEMS TO BE INCLUDED IN GROSS INCOME, AMENDED

INCOME TAX

To Collectors of Internal Revenue and Others Concerned:

The first sentence of the second paragraph of article 22 (a)-1 of Regulations 94[5] and of article 22 (a)-1 of Regulations 86 reading as follows:

"If property is transferred by a corporation to a shareholder, or by an employer to an employee, for an amount substantially less than its fair market value, such shareholder of the corporation or such employee shall include in gross income the difference between the amount paid for the property and the amount of its fair market value."

is amended to read as follows:

"If property is transferred by a corporation to a shareholder, or by an employer to an employee, for an amount substantially less than its fair market value, regardless of whether the transfer is in the guise of a sale or exchange, such shareholder or employee shall include in gross income the difference between the amount paid for the property and the amount of its fair market value to the extent that such difference is in the nature of (1) compensation for services rendered or to be rendered or (2) a distribution of earnings or profits taxable as a dividend, as the case may be."

The second sentence of the second paragraph of article 22 (a)-1 of Regulations 86 reading as follows:

"In computing the gain or loss from the subsequent sale of such property its cost shall be deemed to be its fair market value at the date of acquisition by the shareholder or the employee."

is amended to read as follows:

"In computing the gain or loss from the subsequent sale of such property its basis shall be the amount paid for the property, increased by the amount of such difference included in gross income."

This Treasury Decision is prescribed pursuant to the provisions of section 62 of the Revenue Acts of 1936 and 1934.

[SEAL] MILTON E. CARTER,
Acting Commissioner of Internal Revenue.

Approved, January 4, 1939.

JOHN W. HANES,
Acting Secretary of the Treasury.

[F. R. Doc. 39-85; Filed, January 6, 1939; 12:17 p. m.]

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[4] 3 F. R. 757 DI.
[5] 1 F. R. 1813.

Notices

DEPARTMENT OF AGRICULTURE.

Food and Drug Administration.

NOTICE OF PUBLIC HEARING FOR THE PURPOSE OF RECEIVING EVIDENCE UPON THE BASIS OF WHICH REGULATIONS MAY BE PROMULGATED PROVIDING FOR THE LISTING OF COAL-TAR COLORS WHICH ARE HARMLESS AND SUITABLE FOR USE IN FOODS, DRUGS, AND COSMETICS, DRUGS AND COSMETICS, AND EXTERNALLY APPLIED DRUGS AND COSMETICS; FOR THE CERTIFICATION OF BATCHES OF SUCH COLORS; FOR PROCEDURES THEREUNDER; AND FOR THE PAYMENT OF FEES THEREFOR

In conformity with sub-section (e) of Section 701 of the Federal Food, Drug, and Cosmetic Act (Sec. 701, 52 Stat. 1055; 21 U. S. C. 371 (e)), notice upon proposals herein set forth is hereby given to all interested persons that a public hearing will be held beginning at 10 a. m., February 6, 1939, in Room 1039, Department of Agriculture, South Building, Independence Avenue between 12th and 14th Streets, S. W., Washington, D. C., for the purpose of receiving evidence upon the basis of which, in pursuance of the authority vested in the Secretary of Agriculture by the provisions of Sections 406 (b), 504, 604, and 706 of said act (Sec. 406 (b), 52 Stat. 1049; 21 U. S. C. 346 (b); Sec. 504, 52 Stat. 1052; 21 U. S. C. 354; Sec. 604, 52 Stat. 1055; 21 U. S. C. 364; Sec. 706, 52 Stat. 1058; 21 U. S. C. 376), regulations may be promulgated providing for the listing of coal-tar colors for use in foods, drugs, and cosmetics, drugs and cosmetics, and externally applied drugs and cosmetics; for the certification of batches of such colors; for the procedures incident to such listing and certification; and for the payment of fees therefor, pursuant to Section 706 of said act (Sec. 706, 52 Stat. 1058; 12 U. S. C. 376).

All interested persons are invited to attend this hearing and to offer relevant evidence either in person or by representative. In lieu of personal attendance, affidavits may be offered either in person at the time of the hearing, or by sending the same to Frank S. Hassell, Room 2309, South Building, Department of Agriculture, Independence Avenue, between 12th and 14th Streets SW., Washington, D. C., so as to be in his office by the date above stated. Such affidavits, if relevant and material, may be received, but the Secretary will consider the lack of opportunity for cross-examination in determining the weight which shall be given to such affidavits.

Mr. Frank S. Hassell is hereby designated as presiding officer to conduct in place of the Secretary the foregoing hearing, with full power to administer oaths, and to do all things necessary and appropriate in the proper conduct of such hearing as may be provided in the general procedural regulations which will be available at the hearing.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

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PROPOSED REGULATIONS FOR THE LISTING OF COAL-TAR COLORS, CERTIFICATION OF BATCHES THEREOF, AND PAYMENT OF FEES FOR SUCH SERVICE

SEC. 35.01 *Definitions.* For the purposes of these regulations—

(a) The term "coal-tar color" includes all colors composed of one or more coal-tar dyes, with or without impurities, diluents, or substrata.

(b) The term "straight color" means a coal-tar color listed in regulation 2, and includes such impurities and substrata as are contained in such color.

(c) The term "mixture" means a coal-tar color made by mixing two or more straight colors, or one or more straight colors and one or more diluents.

(d) The term "diluent" means any component of a coal-tar color, except a straight color.

(e) The term "pure dye" means the coal-tar dye contained in a coal-tar color, exclusive of any intermediate or other impurity, or of any diluent or substratum contained therein.

(f) The term "substratum" means the substance on which the pure dye in a lake is extended.

(g) The term "alumina" means a suspension in water of precipitated aluminum hydroxide.

(h) The term "blanc fixe" means a suspension in water of precipitated barium sulfate.

(i) The term "gloss white" means a suspension in water of co-precipitated aluminum hydroxide and barium sulfate.

(j) The term "mixed oxides" means the sum of the quantities of aluminum, iron, calcium, and magnesium (in whatever combination they may exist in a coal-tar color) calculated as aluminum oxide, ferric oxide, calcium oxide, and magnesium oxide.

(k) The term "batch" means a quantity of coal-tar color which is set apart and held as a unit for the purpose of obtaining certification of such quantity.

(l) The term "batch number" means the number assigned to a batch by the person who requests certification thereof.

(m) The term "lot number" means an identifying number or symbol assigned to a batch by the Food and Drug Administration.

(n) The term "externally applied drugs and cosmetics" means drugs and cosmetics which are applied only to external parts of the body and not to the lips or any body surface covered by mucous membrane.

(o) The authorization contained in these regulations for the certification of coal-tar colors for use in food, drugs, and cosmetics, or in drugs and cosmetics, or in externally applied drugs and cosmetics, shall not be considered to authorize the certification of any coal-tar color for use in an eyelash dye or an eyebrow dye. A coal-tar color so used shall be considered to be from a batch that has not been certified in accordance with these regulations, even though such color is from a batch that has been certified for other use.

(p) The definitions and interpretations of terms contained in section 201 of the Act shall be applicable also to such terms when used in these regulations.

SEC. 35.02 *List of straight colors and specifications for their certification.* (a) A batch of a straight color named in the following list may be certified, in accordance with the provisions of these regulations, for use in food, drugs, and cosmetics, if such batch conforms to the specifications herein set forth for such color. (Where a number follows the specification of identity, such number is the number assigned to such color in the Colour Index of 1924, published by the Society of Dyers and Colourists of England.)

General specifications.—A straight color shall be free from all impurities (other than those named in the specifications herein prescribed for such color) to the extent that such impurities can be avoided by good manufacturing practice.

GUINEA GREEN B

SPECIFICATIONS

Sodium salt of p-sulfo-benzylethylamino-fuchson - benzyl - ethylimonium sulfonate (666).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 0.5 percent.
Ether extracts, not more than 0.4 percent.
Chlorides and sulfates of sodium, not more than 6.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.001 percent.
Arsenic (as As_2O_3), not more than 0.00014 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than trace.
Pure dye (as determined by titration with titanium trichloride), not less than 82.0 percent.

LIGHT GREEN SF YELLOWISH

SPECIFICATIONS

Disodium salt of p-sulfo-benzylethylamino - p' - sulfo - fuchson-benzylethylimonium sulfonate (670).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 0.5 percent.
Ether extracts, not more than 0.4 percent.
Chlorides and sulfates of sodium, not more than 6.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.001 percent.
Arsenic (as As_2O_3), not more than 0.00014 percent.
Heavy metals (except Pb and As) by precipitation as sulfides), not more than trace.
Subsidiary dyes (as Guinea Green B) not more than 5.0 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 82.0 percent.

FAST GREEN FCF

SPECIFICATIONS

Disodium salt of 4-hydroxy-2-sulfo-4'-/(N-ethyl - N - p - sulfobenzyl) -amino/ -4'' -/(N-ethyl-N-p-benzylsulfonium) -imino/-triphenylmethane.

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 0.5 percent.
Ether extracts, not more than 0.4 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.001 percent.
Arsenic (as As_2O_3), not more than 0.00014 percent.
Heavy metals (except Pb and As) by precipitation as sulfides), not more than trace.
Subsidiary dyes, not more than 5.0 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 85.0 percent.

NAPHTHOL YELLOW S

SPECIFICATIONS

Disodium salt of 2: 4-dinitro-alpha-naphthol-7-sulfonic acid (10).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 0.2 percent.
Ether extracts, not more than 0.1 per cent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 per cent.
Lead (as Pb), not more than 0.001 percent.
Arsenic (as As_2O_3), not more than 0.00014 percent.
Heavy Metals (except Pb and As) (by precipitation as sulfides), not more than trace.
Martius Yellow, not more than 0.03 per cent.
Pure dye (as determined by titration with titanium trichloride), not less than 85.0 percent.

NAPTHOL YELLOW S—POTASSIUM SALT

SPECIFICATIONS

Dipotassium salt of 2: 4-dinitro-alpha-naphthol-7-sulfonic acid (10).

Volatile matter (at 135° C.), not more than 10.0 percent.
Ether extracts, not more than 0.2 percent.
Chlorides and sulfates of potassium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.001 percent.
Arsenic (as As_2O_3), not more than 0.00014 percent.
Heavy metals (except As and Pb) (by precipitation as sulfides), not more than trace.
Martius Yellow, not more than 0.03 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 85.0 percent.

YELLOW AB

SPECIFICATIONS

Benzene-azo-beta-naphthylamine (22).

Volatile matter (at 80° C.), not more than 0.2 percent.
Sulfated ash, not more than 0.3 percent.
Water soluble matter, not more than 0.3 percent.
Matter, insoluble in carbon tetrachloride, not more than 0.5 percent.
Intermediates, not more than 0.05 percent.
Lead (as Pb), not more than 0.001 percent.
Arsenic (as As_2O_3), not more than 0.00014 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than trace.
Pure dye (as determined by titration with titanium trichloride), not less than 99.0 percent.
Melting point, not less than 99° C.

YELLOW OB

SPECIFICATIONS

o-Toluene-azo-beta-naphthylamine (61).

Volatile matter (at 80° C.), not more than 0.2 percent.
Sulfated ash, not more than 0.3 percent.
Water soluble matter, not more than 0.3 percent.
Matter, insoluble in carbon tetrachloride, not more than 0.5 percent.
Intermediates, not more than 0.05 percent.
Lead (as Pb), not more than 0.001 percent.
Arsenic (as As_2O_3), not more than 0.00014 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than trace.
Pure dye (as determined by titration with titanium trichloride), not less than 99.0 percent.
Melting point, not less than 120° C.

TARTRAZINE

SPECIFICATIONS

Trisodium salt of 4-p-sulfobenzene-azo-1-p-sulfobenzene-5-hydroxy-pyrazol-3- carboxylic acid (640).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 0.5 percent.
Ether extracts, not more than 0.3 percent.
Phenylhydrazine-p-sulfonic acid, not more than 0.1 percent.
Chlorides and sulfates of sodium, not more than 6.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.001 percent.
Arsenic (as As_2O_3), not more than 0.00014 percent.

Heavy metals (except Pb and As) (by precipitation as sulfides), not more than trace.
Subsidiary dyes, not more than 3.0 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 85.0 percent.

SUNSET YELLOW FCF

SPECIFICATIONS

Disodium salt of p-sulfo-benzene-azo-beta-naphthol-6-sulfonic acid.

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 0.5 percent.
Ether extracts, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.001 percent.
Arsenic (as As_2O_3), not more than 0.00014 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than trace.
Subsidiary dyes, not more than 5.0 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 85.0 percent.

PONCEAU 3R

SPECIFICATIONS

Disodium salt of pseudo-cumene-azo-beta-naphthol-3: 6-disulfonic acid (80).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 0.3 percent.
Ether extracts, not more than 0.2 percent.
Pseudo cumidine, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 6.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.001 percent.
Arsenic (as As_2O_3), not more than 0.00014 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than trace.
Lower sulfonated dyes, not more than 5.0 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 85.0 percent.
Boiling range of crude pseudo-cumidine, or of pseudo-cumidine obtained by reduction of the dye, 220–245° C.

AMARANTH

SPECIFICATIONS

Trisodium salt of 4-sulfo-alpha-naphthalene-azo-beta-naphthol-3: 6-disulfonic acid (184).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 0.5 percent.
Ether extracts, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.001 percent.
Arsenic (as As_2O_3), not more than 0.00014 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than trace.
Subsidiary dyes, not more than 4.0 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 85.0 percent.

ERYTHROSINE

SPECIFICATIONS

Disodium salt of hydroxy-tetraiodo-o-carboxy-phenylfluorone (773).

Volatile matter (at 135° C.), not more than 12.0 percent.
Water insoluble matter, not more than 0.2 percent.
Ether extracts, not more than 0.1 percent.
Chlorides and sulfates of sodium, not more than 2.0 percent.
Sodium carbonate, not more than 0.5 percent.
Sodium iodide, not more than 0.4 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.001 percent.
Arsenic (as As_2O_3), not more than 0.00014 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than trace.
Permitted range of organically combined iodine in pure dye, 52.5–54.5 percent.
Pure dye (as determined gravimetrically), not less than 85.0 percent.

PONCEAU SX

SPECIFICATIONS

Disodium salt of 2-(5-sulfo-2-4-xylylazo)-1-naphthol-4-sulfonic acid.

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 0.3 percent.
Ether extracts, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.001 percent.
Arsenic (as As_2O_3), not more than 0.00014 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than trace.
Subsidiary dyes, not more than 5.0 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 85.0 percent.

ORANGE I

SPECIFICATIONS

Sodium salt of p-sulfobenzene-azo-alpha-naphthol (150).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 0.3 percent.
Ether extracts, not more than 0.2 percent.
alpha-Naphthol, not more than 0.1 percent.
Chlorides and sulfates of sodium, not more than 4.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.001 percent.
Arsenic (as As_2O_3), not more than 0.00014 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than trace.
Orange II (151), not more than 5.0 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 85.0 percent.

ORANGE SS

SPECIFICATIONS

1-(o-Tolyl-azo)-2-naphthol.

Volatile matter (at 100° C.), not more than 0.5 percent.
Sulfated ash, not more than 0.3 percent.
Water soluble matter, not more than 0.3 percent.
Matter insoluble in carbon tetrachloride, not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 0.5 percent.
o-Toluidine, not more than 0.05 percent.
beta-Naphthol, not more than 0.05 percent.
Lead (as Pb), not more than 0.001 percent.
Arsenic (as As_2O_3), not more than 0.00014 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than trace.
Pure dye (as determined by titration with titanium trichloride), not less than 98.0 percent.
Melting point, not less than 128.0° C.

BRILLIANT BLUE FCF

SPECIFICATIONS

Sodium salt of p-sulfo-benzylethylamino-o-sulfo-fuchson-benzylethylimonium sulfonate.

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 0.3 percent.
Ether extracts, not more than 0.4 percent.
Chlorides and sulfates of sodium, not more than 4.0 percent.
Sodium acetate, not more than 3.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.001 percent.
Arsenic (as As_2O_3), not more than 0.00014 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than trace.
Subsidiary dyes, not more than 5.0 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 82.0 percent.

INDIGOTINE

SPECIFICATIONS

Sodium salt of p-sulfo-benzylethylamino-o-acid (1180).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 0.5 percent.
Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 7.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.001 percent.
Arsenic (as As_2O_3), not more than 0.00014 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than trace.
Lower sulfonated dyes, not more than 5.0 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 85.0 percent.

(b) A batch of a straight color named in the following list may be certified, in accordance with the provisions of these regulations, for use only in drugs and cosmetics, if such batch conforms to the specifications herein set forth for such color. (Where a number follows the specification of identity, such number is the number assigned to such color in the Colour Index of 1924, published by the Society of Dyers and Colourists of England.)

General specifications.—A straight color shall be free from all impurities (other than those named in the specifications herein prescribed for such color) to the extent that such impurities can be avoided by good manufacturing practice.

GUINEA GREEN B—ALUMINUM LAKE

SPECIFICATIONS

Aluminum salt of p-sulfo-benzylethylamino-fuchson-benzylethylimonium sulfonate, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

GUINEA GREEN B—BARIUM LAKE

SPECIFICATIONS

Barium salt of p-sulfo-benzylethylamino-fuchson-benzylethylimonium sulfonate, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.

Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

LIGHT GREEN CF YELLOWISH

SPECIFICATIONS

Calcium salt of p-sulfo-benzylethylamino-p'-sulfo-fuchson-benzylethylimonium sulfonate (670).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Chlorides and sulfates (as calcium salts), not more than 5.0 percent.
Oxides of iron and aluminum, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Subsidiary dyes (as Guinea Green B), not more than 5.0 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 82.0 percent.

LIGHT GREEN SF YELLOWISH—ALUMINUM LAKE

SPECIFICATIONS

Aluminum salt of p-sulfo-benzylethylamino - p' - sulfo - fuchson - benzylethylimonium sulfonate, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

LIGHT GREEN SF YELLOWISH—BARIUM LAKE

SPECIFICATIONS

Barium salt of p-sulfo-benzylethylamino-p'-sulfo-fuchson-benxylethylimonium sulfonate, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

ALIZARIN CYANINE GREEN F

SPECIFICATIONS

Disodium salt of 1:4-di-o-sulfo-p-tolylaminoanthraquinone (1078).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
1:4-Di-chloro-anthraquinone, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 15.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 75.0 percent.

QUINIZAIN GREEN SS

SPECIFICATIONS

1:4 Di-tolylaminoanthraquinone (1078-unsulfonated).

Volatile matter (at 135° C.), not more than 2.0 percent.
Sulfated ash, not more than 1.0 percent.
Water soluble matter, not more than 0.3 percent.
Matter, insoluble in carbon tetrachloride, not more than 1.5 percent.
Intermediates, not more than 0.5 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 96.0 percent.
Melting point, not less than 210° C.

FAST GREEN FCF—ALUMINUM LAKE

SPECIFICATIONS

Aluminum salt of 4-hydroxy-2-sulfo-4'-/(N-ethyl-N-p-sulfobenzyl)-amino/-4''-/(N-ethyl-N-p-benzyl-sulfonium)-imino/-triphenylmethane, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

FAST GREEN FCF—BARIUM LAKE

SPECIFICATIONS

Barium salt of 4-hydroxy-2-sulfo-4'-/(N-ethyl-N-p-sulfobenzyl)-amino/-4''-/(N-ethyl-N-p-benzyl-sulfonium)-imino/-triphenylmethane, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

NAPHTHOL YELLOW S—ALUMINUM LAKE

SPECIFICATIONS

Aluminum salt of 2:4-dinitro-alpha-naphthol-7-sulfonic acid, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Martius Yellow, not more than 0.03 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

NAPHTHOL YELLOW S—BARIUM LAKE

SPECIFICATIONS

Barium salt of 2:4-dinitro-alpha-naphthol-7-sulfonic acid, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Martius Yellow, not more than 0.03 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

TARTRAZINE—ALUMINUM LAKE

SPECIFICATIONS

Aluminum salt of 4-p-sulfobenzene-azo-1-p-sulfobenzene-5-hydroxy - pyrazol-3-carboxylic acid, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Phenylhydrazine-p-sulfonic acid, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

TARTRAZINE—BARIUM LAKE

SPECIFICATIONS

Barium salt of 4-p-sulfobenzene-azo-1-p-sulfobenzene-5-hydroxy -pyrazol-3-carboxylic acid, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Phenylhydrazine-p-sulfonic acid, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

TARTRAZINE—ZIRCONIUM LAKE

SPECIFICATIONS

Zirconium salt of 4-p-sulfobenzene-azo-1-p-sulfobenzene-5-hydroxy-pyrazol-3-carboxylic acid, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Phenylhydrazine-p-sulfonic acid, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.

Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

FLUORESCEIN

SPECIFICATIONS

A mixture of 3:6-dihydroxy-fluoran with hydroxy-o-carboxy-phenylfluorone (766).

Volatile matter (at 135° C.), not more than 2.0 percent.
Insoluble matter (alkaline solution), not more than 1.0 percent.
Ether extracts (from alkaline solution), not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 2.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 96.0 percent.

URANINE

SPECIFICATIONS

Disodium salt of hydroxy-o-carboxy-phenylfluorene (766).

Volatile matter (at 135° C.), not more than 10.0 percent.
Insoluble matter (alkaline solution), not more than 1.0 percent.
Ether extracts (from alkaline solution), not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 8.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 82.0 percent.

URANINE K

SPECIFICATIONS

Dipotassium salt of hydroxy-o-carboxy-phenylfluorone (766).

Volatile matter (at 135° C.), not more than 10.0 percent.
Insoluble matter (alkaline solution), not more than 1.0 percent.
Ether extracts (from alkaline solution), not more than 0.5 percent.
Chlorides and sulfates of potassium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 82.0 percent.

QUINOLINE YELLOW WS

SPECIFICATIONS

Sodium salt of a mixture of monosulfonic and disulfonic acids (mainly the latter) of quinophthalone or of 2-quinolylindandione (801).

Volatile matter (at 135° C), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Quinaldine, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 6.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as calculated from organically combined nitrogen), not less than 82.0 percent.

QUINOLINE YELLOW—BARIUM LAKE

SPECIFICATIONS

Barium salt of Quinoline Yellow WS, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Quinaldine, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as calculated from organically combined nitrogen), not less than amount claimed on label.

SUNSET YELLOW—ALUMINUM LAKE

SPECIFICATIONS

Aluminum salt of p-sulfobenzene-azo-beta-naphthol-6-sulfonic acid, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by pretation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

SUNSET YELLOW—BARIUM LAKE

SPECIFICATIONS

Barium salt of p-sulfobenzene-azo-beta-naphthol-6-sulfonic acid, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

BRILLIANT LAKE RED R—CALCIUM LAKE

SPECIFICATIONS

Calcium salt of benzene-azo-beta-naphthol carboxylic acid, extended on alumina.

Ether extracts, not more than 0.5 percent.
Aniline, not more than 0.2 percent.
Chlorides and sulfates (as calcium salts), not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

PONCEAU 2R

SPECIFICATIONS

Disodium salt of m-xylene-azo-beta-naphthol-3: 6-disulfonic acid (79).
Volatile matter (at 135° C.), not more than 12.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Xylidine, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 6.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 82.0 percent.

PONCEAU 2R—ALUMINUM LAKE

SPECIFICATIONS

Aluminum salt of m-xylene-azo-beta-naphthol-3:6-disulfonic acid, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Xylidine, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

PONCEAU 2R—BARIUM LAKE

SPECIFICATIONS

Barium salt of m-xylene-azo-beta-napthol-3:6-disulfonic acid, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Xylidine, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

PONCEAU 2R—CALCIUM LAKE

SPECIFICATIONS

Calcium salt of m-xylene-azo-beta-naphthol-3: 6-disulfonic acid, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Xylidine, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05.
Chlorides and sulfates (as calcium salts), not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

PONCEAU 3R—ALUMINUM LAKE

SPECIFICATIONS

Aluminum salt of pseudo-cumene-azo-beta-naphthol-3: 6-disulfonic acid, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Pseudo cumidine, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.

Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

Ponceau 3R—Barium Lake

SPECIFICATIONS

Barium salt of pseudo-cumene-azo-beta-naphthol-3: 6-disulfonic acid, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Pseudo cumidine, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

Lithol Rubin B

SPECIFICATIONS

Sodium salt of o-sulfo-p-toluene-azo-beta-hydroxynaphthoic acid (163).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts (Isopropyl ether), not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 6.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 82.0 percent.

Lithol Rubin BCA

SPECIFICATIONS

Calcium salt of o-sulfo-p-toluene-azo-beta-hydroxynaphthoic acid.

Volatile matter (at 135° C.), not more than 8.0 percent.
Ether extracts (Isopropyl ether), not more than 0.5 percent.
Chlorides and sulfates (as calcium salts), not more than 6.0 percent.
Oxides of iron and aluminum, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 85.0 percent.

Lithol Rubin B—Aluminum Lake

SPECIFICATIONS

Aluminum salt of o-sulfo-p-toluene-azo-beta-hydroxynaphthoic acid, extended on alumina, gloss white, or blanc fixe.

Ether extracts (Isopropyl ether), not more than 0.5 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides) not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

Lithol Rubin B—Calcium Lake

SPECIFICATIONS

Calcium salt of o-sulfo-p-toluene-azo-beta-hydroxynaphthoic acid, extended on alumina, gloss white, or blanc fixe.

Ether extracts (Isopropyl ether), not more than 0.5 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates (as calcium salts), not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As), (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

Lake Red C

SPECIFICATIONS

Sodium salt of 6-sulfo-4-chloro-3-toluene-azo-beta-naphthol (165).

Volatile matter (at 135° C.), not more than 10.0 percent.
Ether extracts (Isopropyl ether), not more than 0.5 percent.
Lake Red C Amine, not more than 0.2 percent.
beta-Naphthol, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As), (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 85.0 percent.

Lake Red CBA

SPECIFICATIONS

Barium salt of 6-sulfo-4-chloro-3-toluene-azo-beta-naphthol.

Volatile matter (at 135° C.), not more than 5.0 percent.
Ether extracts (Isopropyl ether), not more than 0.5 percent.
Lake Red C Amine, not more than 0.2 percent.
beta-Naphthol, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 6.0 percent.
Oxides of iron and aluminum, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 87.0 percent.

Lake Red C—Barium Lake

SPECIFICATIONS

Barium salt of 6-sulfo-4-chloro-3-toluene-azo-beta-naphthol, extended on alumina, gloss white, or blanc fixe.

Ether extracts (Isopropyl ether), not more than 0.5 percent.
Lake Red C Amine, not more than 0.2 percent.
beta-Naphthol, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

Amaranth—Aluminum Lake

SPECIFICATIONS

Aluminum salt of 4-sulfo-alpha-naphthalene-azo-beta-naphthol-3:6-disulfonic acid, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except As and Pb), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

Amaranth—Barium Lake

SPECIFICATIONS

Barium salt of 4-sulfo-alpha-naphthalene-azo-beta-naphthol-3:6-disulfonic acid, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

Amaranth—Calcium Lake

SPECIFICATIONS

Calcium salt of 4-sulfo-alpha-naphthalene-azo-beta-naphthol-3:6-disulfonic acid, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates (as calcium salts), not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

Lithol Red

SPECIFICATIONS

Sodium salt of 1-sulfo-beta-naphthalene-azo-beta-naphthol (189).

Volatile matter (at 135° C.), not more than 5.0 percent.
Ether extracts (Isopropyl ether), not more than 0.5 percent.
Tobias acid, not more than 0.2 percent.
beta-Naphthol, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.

Pure dye (as determined by titration with titanium trichloride), not less than 90.0 percent.

Lithol Red CA

SPECIFICATIONS

Calcium salt of 1-sulfo-beta-naphthalene-azo-beta-naphthol.

Volatile matter (at 135° C.), not more than 5.0 percent.
Ether extracts (Isopropyl ether), not more than 0.5 percent.
Tobias Acid, not more than 0.2 percent.
beta-Naphthol, not more than 0.2 percent.
Chlorides and sulfates (as calcium salts), not more than 5.0 percent.
Oxides of iron and aluminum, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 90.0 percent.

Lithol Red BA

SPECIFICATIONS

Barium salt of 1-sulfo-beta-naphthalene-azo-beta-naphthol.

Volatile matter (at 135° C.), not more than 5.0 percent.
Ether extracts (Isopropyl ether), not more than 0.5 percent.
Tobias acid, not more than 0.2 percent.
beta-Naphthol, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Oxides of iron and aluminum, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 90.0 percent.

Lithol Red SR

SPECIFICATIONS

Strontium salt of 1-sulfo-beta-naphthalene-azo-beta-naphthol.

Volatile matter (at 135° C.), not more than 5.0 percent.
Ether extracts (Isopropyl ether), not more than 0.5 percent.
Tobias acid, not more than 0.2 percent.
beta-Naphthol, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Oxides of iron and aluminum, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 90.0 percent.

Lithol Red—Aluminum Lake

SPECIFICATIONS

Aluminum salt of 1-sulfo-beta-naphthalene-azo-beta-naphthol, extended on alumina, gloss white, blanc fixe, or clay.

Ether extracts (Isopropyl ether), not more than 0.5 percent.
Tobias acid, not more than 0.2 percent.
beta-Naphthol, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

Lithol Red—Barium Lake

SPECIFICATIONS

Barium salt of 1-sulfo-beta-naphthalene-azo-beta-naphthol, extended on alumina, gloss white, blanc fixe, or clay.

Ether extracts (Isopropyl ether), not more than 0.5 percent.
Tobias Acid, not more than 0.2 percent.
beta-Naphthol, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

Lithol Red—Sodium Lake

SPECIFICATIONS

Sodium salt of 1-sulfo-beta-naphthalene-azo-beta-naphthol, extended on alumina, gloss white, blanc fixe, or clay.

Ether extracts (Isopropyl ether), not more than 0.5 percent.
Tobias Acid, not more than 0.2 percent.
beta-Naphthol, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

Lake Red D

SPECIFICATIONS

Sodium salt of 2-carboxy-benzene-azo-beta-naphthol (214).

Volatile matter (at 135° C.), not more than 5.0 percent.
Ether extracts (Isopropyl ether), not more than 0.5 percent.
beta-Naphthol, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 90.0 percent.

Lake Red DBA

SPECIFICATIONS

Barium salt of 2-carboxy-benzene-azo-beta-naphthol.

Volatile matter (at 135° C.), not more than 5.0 percent.
Ether extracts (Isopropyl ether), not more than 0.5 percent.
beta-Naphthol, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Oxides of iron and aluminum, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 90.0 percent.

Lake Red DCA

SPECIFICATIONS

Calcium salt of 2-carboxy-benzene-azo-beta-naphthol.

Volatile matter (at 135° C.), not more than 5.0 percent.
Ether extracts (Isopropyl ether), not more than 0.5 percent.
beta-Naphthol, not more than 0.2 percent.
Chlorides and sulfates (as calcium salts), not more than 5.0 percent.
Oxides of iron and aluminum, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 90.0 percent.

Lake Red D—Barium Lake

SPECIFICATIONS

Barium salt of 2-carboxy-benzene-azo-beta-naphthol, extended on alumina, gloss white, or blanc fixe.

Ether extracts (Isopropyl ether), not more than 0.5 percent.
beta-Naphthol, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

Lake Red D—Calcium Lake

SPECIFICATIONS

Calcium salt of 2-carboxy-benzene-azo-beta-naphthol, extended on alumina, gloss white, or blanc fixe.

Ether extracts (Isopropyl ether), not more than 0.5 percent.
beta-Naphthol, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates (as calcium salts), not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

Toney Red

SPECIFICATIONS

Benzene - azo - benzene - azo - beta - naphthol (248).

Volatile matter (at 135° C.), not more than 5.0 percent.
Insoluble matter (in toluene), not more than 3.0 percent.
Aniline, not more than 0.2 percent.
Amino-azo-benzene, not more than 0.2 percent.
beta-Naphthol, not more than 0.2 percent.
Sodium Chloride, not more than 3.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.

Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 85.0 percent.

Oil Red OS

SPECIFICATIONS

Xylene-azo-xylene-azo-beta-naphthol.

Volatile matter (at 100° C.), not more than 2.0 percent.
Sulfated ash, not more than 2.0 percent.
Water soluble matter, not more than 0.5 percent.
Matter, insoluble in carbon tetrachloride, not more than 1.0 percent.
Chlorides and sulfates of sodium, not more than 1.0 percent.
Amino-azo-xylene, not more than 0.2 percent.
Xylidine, not more than 0.2 percent.
beta-Naphthol, not more than 0.2 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 95.0 percent.

Rhodamine B

SPECIFICATIONS

Tetraethyldiamino-o-carboxy-phenyl-xanthenyl chloride (749).

Volatile matter (at 135° C.), not more than 5.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Diethyl-m-aminophenol, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 2.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 92.0 percent.

Rhodamine B—Acetate

SPECIFICATIONS

Tetraethyldiamino-o-carboxy-phenyl-xanthenyl acetate (749).

Volatile matter (at 135° C.), not more than 5.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Diethyl-m-aminophenol, not more than 0.2 percent.
Sodium acetate, not more than 2.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 92.0 percent.

Rhodamine B—Aluminum Lake

SPECIFICATIONS

Tetraethyldiamino-o-carboxy-phenyl-xanthenyl chloride (or acetate), precipitated with sodium benzoate and extended on aluminum benzoate or gloss white.

Ether extracts, not more than 0.5 percent.
Diethyl-m-aminophenol, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

Dibromofluorescein

SPECIFICATIONS

Hydroxy-dibromo-o-carboxy-phenylfluorone.

Volatile matter (at 135° C.), not more than 5.0 percent.
Insoluble matter (alkaline solution), not more than 1.0 percent.
Ether extracts (from alkaline solution), not more than 0.5 percent.
Sodium chloride, not more than 3.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free bromine, not more than 0.02 percent.
Permitted range of organically combined bromine in pure dye, 31.0–35.0 percent.
Pure dye (as determined gravimetrically), not less than 90.0 percent.

Dibromofluorescein NA

SPECIFICATIONS

Disodium salt of hydroxy-dibromo-o-carboxy-phenylfluorone.

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free bromine, not more than 0.02 percent.
Permitted range of organically combined bromine in pure dye, 28.0–32.0 percent.
Pure dye (as determined gravimetrically), not less than 85.0 percent.

Dibromofluorescein K

SPECIFICATIONS

Dipotassium salt of hydroxy-dibromo-o-carboxy-phenylfluorone.

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of potassium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free bromine, not more than 0.02 percent.
Permitted range of organically combined bromine in pure dye, 26.0–30.0 percent.
Pure dye (as determined gravimetrically), not less than 85.0 percent.

Dichlorofluorescein

SPECIFICATIONS

Hydroxy-dichloro-o-carboxy-phenylfluorone.

Volatile matter (at 135° C.), not more than 5.0 percent.
Insoluble matter (alkaline solution), not more than 1.0 percent.
Ether extracts (from alkaline solution), not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 3.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free chlorine, not more than 0.02 percent.
Permitted range of organically combined chlorine in pure dye, 16.0–19.0 percent.
Pure dye (as determined by titration with titanium trichloride) not less than 90.0 percent.

Dichlorofluorescein—NA

SPECIFICATIONS

Sodium salt of hydroxy-dichloro-o-carboxy-phenylfluorone.

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free chlorine, not more than 0.02 percent.
Permitted range of organically combined chlorine in pure dye, not more than 14.5–17.5 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 85.0 percent.

Dichlorofluorescein—Aluminum Lake

SPECIFICATIONS

Aluminum salt of hydroxy-dichloro-o-carboxy-phenylfluorone, extended on alumina.

Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free chlorine, not more than 0.02 percent.
Pure dye (as determined by titration with titanium trichloride, not less than amount claimed on label.

Diiodofluorescein

SPECIFICATIONS

Hydroxy-di-iodo-o-carboxy-phenylfluorone.

Volatile matter (at 135° C.), not more than 5.0 percent.
Insoluble matter (alkaline solution), not more than 1.0 percent.
Ether extracts (from alkaline solution), not more than 0.5 percent.
Sodium chloride, not more than 3.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free iodine, not more than 0.05 percent.
Permitted range of organically combined iodine in pure dye, 41.5–45.5 percent.
Pure dye (as determined gravimetrically), not less than 85.0 percent.

Erythrosine Yellowish NA

SPECIFICATIONS

Disodium salt of hydroxy-di-iodo-o-carboxy-phenylfluorone (772).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.

Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 3.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free iodine, not more than 0.05 percent.
Permitted range of organically combined iodine in pure dye, 38.5–42.5 percent.
Pure dye (as determined gravimetrically), not less than 85.0 percent.

ERYTHROSINE YELLOWISH K

SPECIFICATIONS

Dipotassium salt of hydroxy-di-iodo-o-carboxy-phenylfluorone (772).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of potassium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free iodine, not more than 0.05 percent.
Permitted range of organically combined iodine in pure dye, 36.5–40.5 percent.
Pure dye (as determined gravimetrically), not less than 85.0 percent.

ERYTHROSINE YELLOWISH NH

SPECIFICATIONS

Diammonium salt of hydroxy-di-iodo-o-carboxy-phenylfluorone (772).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of ammonium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free iodine, not more than 0.05 percent.
Permitted range of organically combined iodine in pure dye, 39.0–43.0 percent.
Pure dye (as determined gravimetrically), not less than 85.0 percent.

ERYTHROSINE YELLOWISH—ALUMINUM LAKE

SPECIFICATIONS

Aluminum salt of hydroxy-di-iodo-o-carboxy-phenylfluorone, extended on alumina.

Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free iodine, not more than 0.05 percent.
Pure dye (as determined gravimetrically), not less than amount claimed on label.

TETRABROMOFLUORESCEIN

SPECIFICATIONS

Hydroxy - tetrabromo - o - carboxy - phenolfluorone.

Volatile matter (at 135° C.), not more than 4.0 percent.
Insoluble matter (alkaline solution), not more than 1.0 percent.
Ether extracts (from alkaline solution), not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 2.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free Bromine, not more than 0.02 percent.
Permitted range of organically combined bromine in pure dye, 47.5–51.5 percent.
Pure dye (as determined gravimetrically), not less than 95.0 percent.

EOSIN YS

SPECIFICATIONS

Disodium salt of hydroxy-tetrabromo-o-carboxy-phenylfluorone (768).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free bromine, not more than 0.02 percent.
Permitted range of organically combined bromine in pure dye, 44.5–48.5 percent.
Pure dye (as determined gravimetrically), not less than 85.0 percent.

EOSIN YSK

SPECIFICATIONS

Dipotassium salt of hydroxy-tetrabromo-o-carboxy-phenylfluorone (768).

Volatile matter (at 135° C.), not more than 15.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of potassium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free bromine, not more than 0.02 percent.
Permitted range of organically combined bromine in pure dye (free of water or alcohol of crystallization), 42.0–46.0 percent.
Pure dye (as determined gravimetrically), not less than 80.0 percent.

TETRABROMOFLUORESCEIN — ALUMINUM LAKE

SPECIFICATIONS

Aluminum salt of hydroxy-tetrabromo-o-carboxy-phenylfluorone, extended on blanc fixe.

Ether extracts, not more than 0.5 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free bromine, not more than 0.02 percent.
Pure dye (as determined gravimetrically), not less than amount claimed on label.

TETRACHLOROFLUORESCEIN

SPECIFICATIONS

Hydroxy-tetrachloro-o-carboxy-phenylfluorone.

Volatile matter (at 135° C.), not more than 5.0 percent.
Insoluble matter (alkaline solution), not more than 1.0 percent.
Ether extracts (from alkaline solution), not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 3.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free chlorine, not more than 0.02 percent.
Permitted range of organically combined chlorine in pure dye, 28.0–32.0 percent.
Pure dye (as determined gravimetrically), not less than 90.0 percent.

TETRACHLOROFLUORESCEIN NA

SPECIFICATIONS

Disodium salt by hydroxy-tetrachloro-o-carboxy-phenylfluorone.

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free chlorine, not more than 0.02 percent.
Permitted range of organically combined chlorine in pure dye, 26.0–29.5 percent.
Pure dye (as determined gravimetrically), not less than 85.0 percent.

TETRACHLOROFLUORESCEIN K

SPECIFICATIONS

Dipotassium salt of hydroxy-tetrachloro-o-carboxy-phenylfluorone.

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of potassium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free chlorine, not more than 0.02 percent.
Permitted range of organically combined chlorine in pure dye, 24.5–27.5 percent.
Pure dye (as determined gravimetrically), not less than 85.0 percent.

ERYTHROSINE—ALUMINUM LAKE

SPECIFICATIONS

Aluminum salt of hydroxy tetra-iodo-o-carboxy-phenylfluorone, extended on alumina.

Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free iodine, not more than 0.05 percent.
Pure dye (as determined gravimetrically), not less than amount claimed on label.

TETRACHLOROTETRABROMOFLUORESCEIN

SPECIFICATIONS

Hydroxy - tetrabromo - tetrachloro - o - carboxy-phenylfluorone.

Volatile matter (at 135° C.), not more than 5.0 percent.

Insoluble matter (alkaline solution), not more than 1.0 percent.
Ether extracts (from alkaline solution), not more than 0.5 percent.
Sodium chloride, not more than 3.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except As and Pb) (by precipitation as sulfides), not more than 0.003 percent.
Free halogens, not more than 0.02 percent.
Permitted range of organically combined bromine in pure dye, 38.5–42.5 percent.
Permitted range of organically combined chlorine in pure dye, 16.0–19.0 percent.
Pure dye (as determined gravimetrically), not less than 90.0 percent.

Phloxine B

SPECIFICATIONS

Disodium salt of tetrabromo-tetrachloro-o-carboxy-phenylfluorone (778).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free halogens, not more than 0.02 percent.
Permitted range of organically combined bromine in pure dye, 36.5–40.5 percent.
Permitted range of organically combined chlorine in pure dye, 16.0–18.0 percent.
Pure dye (as determined gravimetrically), not less than 85.0 percent.

Orange TR

SPECIFICATIONS

4:5:14-Tribromo-2:7-dicarboxy-3:6-dihydroxy-fluoran.

Volatile matter (at 135° C.), not more than 2.0 percent.
Sulfated ash, not more than 1.0 percent.
Insoluble matter (alkaline solution), not more than 0.3 percent.
Soluble matter (in 1 percent aqueous hydrochloric acid), not more than 2.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free bromine, not more than 0.02 percent.
Permitted range of organically combined bromine in pure dye, 36.0–40.0 percent.
Pure dye (as determined gravimetrically), not less than 95.0 percent.

Bluish Orange TR

SPECIFICATIONS

1:4:5:8:14-Penta bromo-2:7-dicarboxy-3:6 dihydroxy-fluoran.

Volatile matter (at 135° C.), not more than 2.0 percent.
Sulfated ash, not more than 1.0 percent.
Insolubule matter (alkaline solution), not more than 0.3 percent.
Soluble matter (in 1 percent aqueous hydrochloric acid), not more than 2.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except As and Pb) (by precipitation as sulfides), not more than 0.003 percent.
Free Bromine, not more than 0.02 percent.
Permitted range of organically combined bromine in pure dye, 47.0–51.0 percent.
Pure dye (as determined gravimetrically), not less than 95.0 percent.

Alizarin

SPECIFICATIONS

1:2-Dihydroxyanthraquinone (1027).

Volatile matter (at 135° C.), not more than 2.0 percent.
Water soluble matter, not more than 1.5 percent
Ether extracts, not more than 1.0 percent.
Sodium chloride, not more than 1.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined gravimetrically), not less than 95.0 percent.
Melting point, not less than 285° C.

Alizarin—Madder Lake

SPECIFICATIONS

Calcium salt of 1: 2-dihydroxyanthraquinone, extended on alumina.

Chlorides and sulfates of sodium, not more than 5.0 percent.
Ether extracts (from alkaline solution), not more than 0.5 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined gravimetrically), not less than amount claimed on label.

Helindone Pink CN

SPECIFICATIONS

6-6′: Dichloro-4: 4′-dimethyl-2: 2′-bis-thionaphthenindigo.

Volatile matter (at 135° C.), not more than 5.0 percent.
Matter, insoluble in xylene, not more than 1.0 percent.
Sodium chloride, not more than 3.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as calculated from organically combined chlorine or sulfur), not less than 90.0 percent.

Orange G

SPECIFICATIONS

Disodium salt of phenyl-azo-beta-naphthol-6: 8-disulfonic acid (27).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Aniline, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 8.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 82.0 percent.

Orange I—Aluminum Lake

SPECIFICATIONS

Aluminum salt of p-sulfobenzene-azo-alpha-naphthol, extended on alumina, gloss white, blanc fixe, or clay.

Ether extracts, not more than 0.5 percent.
alpha-Naphthol, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

Orange I—Barium Lake

SPECIFICATIONS

Barium salt of p-sulfobenzene-azo-alpha-naphthol, extended on alumina.

Ether extracts, not more than 0.5 percent.
alpha-Naphthol, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

Orange II

SPECIFICATIONS

Sodium salt of p-sulfobenzene-azo-beta-naphthol (151).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
beta-Naphthol, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except As and Pb) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 85.0 percent.

Orange II—Aluminum Lake

SPECIFICATIONS

Aluminum salt of p-sulfobenzene-azo-beta-naphthol, extended on alumina, gloss white, blanc fixe, or clay.

Ether extracts, not more than 0.5 percent.
beta-Naphthol, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

Orange II—Barium Lake

SPECIFICATIONS

Barium salt of p-sulfobenzene-azo-beta-naphthol, extended on alumina, gloss white, blanc fixe, or clay.

Ether extracts, not more than 0.5 percent.
beta-Naphthol, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.

Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

RESORCIN BROWN

SPECIFICATIONS

Sodium salt of p-sulfobenzene-azo-resorcinol-azo-m-xylene (234).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
m-Xylidine, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 6.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 82.0 percent.

ALIZUROL PURPLE SS

SPECIFICATIONS

1 Hydroxy -4 - p-tolylaminoanthroquinone (1073 unsulfonated).

Volatile matter (at 135° C.), not more than 2.0 percent.
Sulfated ash, not more than 1.0 percent.
Matter insoluble in carbon tetrachloride, not more than 1.5 percent.
p-Toluidine, not more than 0.2 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as calculated from organically combined nitrogen), not less than 96.0 percent.
Melting point, not less than 185° C.

ALPHAZURINE FG

SPECIFICATIONS

Ammonium salt of p-sulfo-benzylethylamino-o-sulfo - fuchson - benzylethylimonium sulfonate (671).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of ammonium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 82.0 percent.

ALPHAZURINE FG—ALUMINUM LAKE

SPECIFICATIONS

Aluminum salt of p-sulfo-benzylethylamino-o-sulfo-fuchson - benzylethylimonium sulfonate, extended on alumina.

Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

ALPHAZURINE FG—BARIUM LAKE

SPECIFICATIONS

Barium salt of p-sulfo-benzylethylamino-o-sulfo-fuchson-benzylethylimonium sulfonate, extended on alumina.

Ether extracts, not more than 0.5 percent.
Soluble barium (in dilute HCl), (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

ALIZARIN ASTROL B

SPECIFICATIONS

Sodium salt of 1-methylamino-4-(o-sulfo-p-tolyl-amino)-anthraquinone (1075).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 8.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as calculated from organically combined nitrogen or sulfur), not less than 80.0 percent.

INDIGO (SYNTHETIC)

SPECIFICATIONS

2: 2'-bis-indole-indigo (1177).

Volatile matter (at 135° C.), not more than 5.0 percent.
Ether extracts, not more than 0.5 percent.
Matter, insoluble in dichlorhydrin, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 95.0 percent.

INDIGO—ALUMINUM LAKE

SPECIFICATIONS

2: 2'-bis-indole-indigo, extended on alumina.

Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

INDIGOTINE—BARIUM LAKE

SPECIFICATIONS

Barium salt of indigotin-5:5'-disulfonic acid, extended by blanc fixe.

Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by tritration with titanium trichloride), not less than amount claimed on label.

NAPHTHOL BLUE BLACK

SPECIFICATIONS

Disodium salt of p-nitrobenzene-azo-3:6-disulfo - 1 - amino - 8-naphthol-azo-benzene (246).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Aniline, not more than 0.2 percent.
p-Nitroaniline, not more than 0.2 percent.
Chlorides and sulfates of sodium, more than 10.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by tritration with titanium trichloride), not less than 82.0 percent.

(c) A batch of a straight color named in the following list may be certified, in accordance with the provisions of these regulations, for use only in externally applied drugs and cosmetics, if such batch conforms to the specifications herein set forth for such color. (Where a number follows the specification of identity, such number is the number assigned to such color in the Colour Index of 1924, published by the Society of Dyers and Colourists of England.)

General specification.—A straight color shall be free from all impurities (other than those named in the specifications herein prescribed for such color) to the extent that such impurities can be avoided by good manufacturing practice.

METANIL YELLOW

SPECIFICATIONS

Sodium salt of m-sulfobenzene-azo-diphenylamine (138).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Chloroform soluble matter, not more than 0.5 percent.
Diphenylamine, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 7.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 85.0 percent.

METANIL YELLOW CA

SPECIFICATIONS

Calcium salt of m-sulfobenzene-azo-diphenylamine.

Volatile matter (at 135° C.), not more than 10.0 percent.
Chloroform soluble matter, not more than 0.5 percent.
Diphenylamine, not more than 0.2 percent.
Chlorides and sulfates (as calcium salts), not more than 5.0 percent.
Oxides of iron and aluminum, not more than 1.0 percent.

Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 85.0 percent.

METANIL YELLOW—ALUMINUM LAKE

SPECIFICATIONS

Aluminum salt of m-sulfobenzene-azo-diphenylamine, extended on alumina, gloss white, or blanc fixe.

Chloroform soluble matter, not more than 0.5 percent.
Diphenylamine, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

FAST LIGHT YELLOW

SPECIFICATIONS

Sodium salt of 4-benzene-azo-1-p-sulfobenzene-3-methyl-5-hydroxy-pyrazol (636).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Aniline, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 6.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 82.0 percent.

FAST LIGHT YELLOW—ALUMINUM LAKE

SPECIFICATIONS

Aluminum salt of 4-benzene-azo-1-p-sulfobenzene-3-methyl-5-hydroxy-pyrazol, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Aniline, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

FAST LIGHT YELLOW—BARIUM LAKE

SPECIFICATIONS

Barium salt of 4-benzene-azo-1-p-sulfobenzene-3-methyl-5 hydroxy-pyrazol, extended on alumina, gloss white, or blanc fixe.

Ether extracts, not more than 0.5 percent.
Aniline, not more than 0.2 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

POLAR YELLOW 5G

SPECIFICATIONS

Sodium salt of the toluene-p-sulfonyl-ether of 4-(p-hydroxy-benzene-azo)-1-(p-chloro-o-sulfobenzene)-3-methyl-5-hydroxy-pyrazol (642).

Volatile matter (at 135° C.), not more than 5.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
p-Aminophenol, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 10.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 85.0 percent.

AMIDONAPHTHOL RED 6B

SPECIFICATIONS

Disodium salt of p-acetylaminobenzene-azo-8-acetylamino-1-naphthol-3: 6-disulfonic acid (57).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
p-Amino acetanilid, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 6.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 82.0 percent.

PIGMENT SCARLET NA

SPECIFICATIONS

Trisodium salt of 2-carboxy-benzene-azo-beta-naphthol-3: 6-disulfonic acid (216).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 82.0 percent.

PIGMENT SCARLET—BARIUM LAKE

SPECIFICATIONS

Barium salt of 2-carboxy-benzene-azo-beta-naphthol-3:6-disulfonic acid, extended on alumina, zinc oxide, or titanic oxide.

Ether extracts, not more than 0.5 percent.
Soluble barium (in dilute HCl) (as $BaCl_2$), not more than 0.05 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

PIGMENT SCARLET—CALCIUM LAKE

SPECIFICATIONS

Calcium salt of 2-carboxy-benzene-azo-beta-naphthol-3:6-disulfonic acid, extended on alumina, zinc oxide, or titanic oxide.

Ether extracts, not more than 0.5 percent.
Chlorides and sulfates (as calcium salts), not more than 5.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than amount claimed on label.

VIOLAMINE R

SPECIFICATIONS

Disodium salt of sulfo-di-o-tolyldiamino-o-carboxy-phenyl-xanthenyl (758).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
o-Toluidine, not more than 0.2 percent.
Mixed oxides, not more than 1.0 percent.
Chlorides and sulfates of sodium, not more than 10.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 80.0 percent.

DICHLOROTETRAIODOFLUORESCEIN

SPECIFICATIONS

Hydroxy-tetraiododichloro-o-carboxy-fluorone.

Volatile matter (at 135° C.), not more than 5.0 percent.
Insoluble matter (alkaline solution), not more than 1.0 percent.
Ether extracts (from alkaline solution), not more than 0.5 percent
Sodium chloride, not more than 3.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free halogens, not more than 0.02 percent.
Permitted range of organically combined iodine in pure dye, not more than 54.0–58.0 percent.
Permitted range of organically combined chlorine in pure dye, 7.0–8.5 percent.
Pure dye (as determined gravimetrically), not less than 90.0 percent.

ROSE BENGALE TD

SPECIFICATIONS

Disodium salt of hydroxy-tetraiododichloro-o-carboxy-phenylfluorone (777).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of sodium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.

Free halogens, not more than 0.02 percent.
Permitted range of organically combined iodine in pure dye, 51.5–55.5 percent.
Permitted range of organically combined chlorine in pure dye, 6.8–8.3 percent.
Pure dye (as determined gravimetrically), not less than 85.0 percent.

ROSE BENGALE TDK

SPECIFICATIONS

Dipotassium salt of hydroxy-tetraiododichloro-o-carboxy-phenylfluorone (777).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Chlorides and sulfates of potassium, not more than 5.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Free halogens, not more than 0.02 percent.
Permitted range of organically combined iodine in pure dye, 50.0–54.0 percent.
Permitted range of organically combined chlorine in pure dye, 6.5–8.0 percent.
Pure dye (as determined gravimetrically), not less than 85.0 percent.

ALIZARIN CARMINE

SPECIFICATIONS

Sodium salt of 1:2-dihydroxyanthaquinone-3-sulfonic acid (1034).

Volatile matter (at 135° C.), not more than 10.0 percent.
Water insoluble matter, not more than 1.0 percent.
Chlorides and sulfates of sodium, not more than 6.0 percent.
Mixed oxides, not more than 1.0 percent.
Free acid as H_2SO_4, not more than 0.01 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (by spectrophotometric determination), not less than 82.0 percent.

METHYLENE BLUE

SPECIFICATIONS

Tetromethyldiamino - diphenothiazonium chloride (922).

Volatile matter (at 110° C.), not more than 16.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Dimethyl aniline, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 2.0 percent.
Mixed oxides, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 82.0 percent.

METHYLENE BLUE—ZINC DOUBLE CHLORIDE

SPECIFICATIONS

Zinc double chloride salt of tetramethyldiamino-diphenothiazonium chloride (922).

Volatile matter (at 110° C.), not more than 15.0 percent.
Water insoluble matter, not more than 1.0 percent.
Ether extracts, not more than 0.5 percent.
Dimethyl aniline, not more than 0.2 percent.
Chlorides and sulfates of sodium, not more than 2.0 percent.
Zinc chloride (not a part of the dye), not more than 1.0 percent.
Oxides of iron and aluminum, not more than 1.0 percent.
Lead (as Pb), not more than 0.002 percent.
Arsenic (as As_2O_3), not more than 0.0002 percent.
Heavy metals (except Pb and As) (by precipitation as sulfides), not more than 0.003 percent.
Pure dye (as determined by titration with titanium trichloride), not less than 82.0 percent.

SEC. 35.03 *Mixtures which may be certified.* (a) A batch of a mixture which contains no straight color listed in section 35.02 (b) or (c) may be certified, in accordance with the provisions of these regulations, for use in food, drugs, and cosmetics, if—

(1) each coal-tar color used as an ingredient in mixing such batch is from a previously certified batch and such color has not changed in composition in any manner whatever since such previous certification, except by mixing into such batch of mixture;

(2) each diluent in such batch of mixture is harmless and suitable for use therein; and

(3) no diluent (except resins, natural gum, and pectin) in such mixture is a nonnutritive substance, unless such mixture is for use in coloring a food specified in the request for certification of such batch submitted in accordance with section 35.05 (c), and such diluent, in the usual process of manufacturing such food, is removed and does not become a component of such food.

(b) A batch of a mixture which contains no straight color listed in section 35.02 (c), or which contains a diluent not permitted by clause (3) of paragraph (a) of this section, may be certified, in accordance with the provisions of these regulations, for use only in drugs and cosmetics, if—

(1) each coal-tar color used as an ingredient in mixing such batch is from a previously certified batch and such color has not changed in composition in any manner whatever since such previous certification, except by mixing into such batch of mixture; and

(2) each diluent in such batch of mixture is harmless and suitable for use therein.

(c) A batch of a mixture which contains a straight color listed in section 35.02 (c) may be certified, in accordance with the provisions of these regulations, for use only in externally applied drugs and cosmetics, if—

(1) each coal-tar color used as an ingredient in mixing such batch is from a previously certified batch and such color has not changed in composition in any manner whatever since such previous certification, except by mixing into such batch of mixture; and

(2) each diluent in such batch of mixture is harmless and suitable for use therein.

SEC. 35.04 *Sampling, storage, and packaging.* (a) A sample of a coal-tar color which is to accompany a request for certification submitted in accordance with section 35.05 shall be taken from the batch covered by such request only after such batch has been so thoroughly mixed as to be of uniform composition throughout. Immediately after such sample is taken it shall be closed in a package of such kind as to prevent change in the composition of such sample. Such package shall be labeled to show conspicuously the name and post office address of the person submitting such request, the name of such color, and the batch number and quantity of such batch.

(b) Immediately after such sample is taken such batch shall be stored in containers of such kind as to prevent change in the composition of such color, or closed in packages for shipment or delivery, and so held until such batch is certified or certification thereof is refused. If such batch is certified and at the time of certification such batch or any part thereof is so stored, such storage shall be maintained until such batch or part is—

(1) closed in such packages,

(2) used by the person who obtained such certification as an ingredient in a batch of a mixture on which such person submits a request for certification in accordance with section 35.05, or

(3) used by such person in coloring a food, drug, or cosmetic, in accordance with the use for which such batch was certified.

(c) The package in which a coal-tar color is closed for shipment or delivery shall be of such kind as to prevent change in the composition of such color, and shall be so closed or sealed that such package cannot be opened without destroying such package or seal.

(d) For the purposes of these regulations (except for the purpose of stating the percentage of pure dye as required by section 35.08 (a) (3) and (b)) an unavoidable change in the moisture content of a coal-tar color caused by ordinary and customary exposure that occurs in good storage, packing, and distribution practice, shall not be considered to be a change in the composition of such color.

SEC. 35.05 *Requests for certification.* (a) A request for certification of a batch of a coal-tar color shall be addressed to the Food and Drug Administration, U. S. Department of Agriculture, Washington, D. C. A request from a foreign manufacturer shall be signed by such manufacturer and by an agent of such manufacturer who resides in the United States.

(b) Except in the case of a request submitted under paragraph (d) of this

section, a person who requests the certification of a batch of a straight color shall submit as part of his request statements showing—

(1) whether or not he manufactured such batch, and if he did not, the name and post office address of the manufacturer thereof; and

(2) the name of such color, as listed in section 35.02, and the batch number and quantity of such batch.

Such request shall be accompanied by a one-half pound sample taken from such batch and accurately representative thereof, and by payment of the fee prescribed by section 35.12 (a) (1). Such person shall submit such additional information and samples as the Food and Drug Administration may require for the purpose of determining whether or not such batch complies with the requirements laid down by section 35.06 (a) for the issuance of a certificate.

(c) Except in the case of a request submitted under paragraph (d) of this section, a person who requests certification of a batch of a mixture shall submit as part of his request statements—

(1) to the effect that he mixed such batch;

(2) showing the name of such mixture, and the batch number and quantity of such batch;

(3) showing the lot number of each coal-tar color used as an ingredient in mixing such batch, the quantity of such color so used, and that such color has not changed in composition in any manner whatever since certification, except by mixing into such batch;

(4) showing the name, quality, and quantity of each diluent used as an ingredient in mixing such batch;

(5) in case such mixture contains a diluent permitted by clause (3) of section 35.03 (a) only because such diluent does not become a component of a food colored by such mixture, specifying the name of such food; and

(6) describing fully the process of mixing, with special reference to the precautions taken to render such batch uniform in composition.

Such request shall be accompanied by a one-fourth pound sample taken from such mixed batch and accurately representative thereof, and by payment of the fee prescribed by section 35.12 (a) (2). Such person shall submit such additional information and samples as the Food and Drug Administration may require for the purpose of determining whether or not such mixed batch complies with the requirements laid down by section 35.06 (a) for the issuance of a certificate.

(d) A person who requests the certification of a batch made by repacking a coal-tar color from a batch previously certified under these regulations, shall submit as part of his request statements—

(1) to the effect that he made the batch on which he requests certification by repacking such color, and that such color has not changed in composition in any manner whatever since such previous certification; and

(2) showing the lot number of such previously certified batch, the name of such repacked color, and the batch number and quantity of such repacked batch.

Such request shall be accompanied by a one-fourth pound sample taken from such repacked batch and accurately representative thereof, and by payment of the fee prescribed by section 35.12 (a) (2). Such person shall submit such additional information and samples as the Food and Drug Administration may require for the purpose of determining whether or not such repacked batch complies with the requirements of section 35.06 (a) for the issuance of a certificate.

SEC. 35.06 *Certification.* (a) If the Food and Drug Administration determines, after such investigation as it considers to be necessary, that—

(1) a request submitted in accordance with section 35.05 appears to contain no untrue statement of a material fact;

(2) in the case of a straight color, such color conforms to the specifications set forth therefor in section 35.02;

(3) in the case of a mixture containing a diluent, such diluent is harmless and suitable for use therein; and

(4) the batch covered by such request otherwise appears to comply with these regulations,

the Food and Drug Administration shall issue to the person who submitted such request a certificate showing the lot number assigned to such batch and that such batch, subject to the terms, conditions, and restrictions prescribed by section 35.07, is a certified batch for use in food, drugs, and cosmetics, or for use only in drugs and cosmetics, or for use only in externally applied drugs and cosmetics, as the case may be.

(b) If the Food and Drug Administration determines, after such investigation as it considers to be necessary, that a request submitted in accordance with section 35.05, or the batch of coal-tar color covered by such request, does not comply with the requirements laid down by paragraph (a) of this section for the issuance of a certificate, the Food and Drug Administration shall refuse to certify such batch and shall give notice thereof to the person who submitted such request, stating its reasons for refusal.

SEC. 35.07 *Limitations of certificates.* (a) If a certificate is obtained through fraud or misrepresentation of a material fact, such certificate shall not be effective, and coal-tar color from the batch on which such certificate was issued shall be considered to be from a batch that has not been certified in accordance with these regulations.

(b) If, between the time a sample of coal-tar color accompanying a request for certification is taken and the time a certificate covering the batch of such color is received by the person to whom it is issued, any such color becomes changed in composition in any manner whatever, such certificate shall not be effective with respect to such changed color, and such changed color shall be considered to be from a batch that has not been certified in accordance with these regulations.

(c) If, at any time after a certificate is received by the person to whom it is issued, any color from the batch covered by such certificate becomes changed in composition in any manner whatever, such certificate shall expire with respect to such changed color. After such expiration such color shall be considered to be from a batch that has not been certified in accordance with these regulations; except that such color shall not be so considered for the purpose of certifying a batch of a mixture in which such color was used as an ingredient, if such change resulted solely from such use.

(d) A certificate shall expire with respect to any coal-tar color covered thereby if the package in which such color was closed for shipment or delivery is opened, unless opened solely for repacking by the person to whom such certificate was issued. After such expiration such color shall be considered to be from a batch that has not been certified in accordance with these regulations; except that such color shall not be so considered—

(1) when such color is used, subject to the restrictions prescribed by paragraphs (f), (g) and (h) of this section, in coloring a food, drug, or cosmetic;

(2) for the purpose of certifying a batch made by repacking such color; or

(3) for the purpose of certifying a batch of a mixture in which such color is used as an ingredient.

(e) A certificate shall not be effective with respect to a package of coal-tar color, and such color shall be considered to be from a batch that has not been certified in accordance with these regulations, if such package is shipped or delivered under a label which does not bear all words, statements, and other information required by section 35.08 to appear thereon.

(f) If a mixture from a batch containing a diluent permitted by clause (3) of section 35.03 (a) only because such diluent does not become a component of a food colored by such mixture is used in coloring another food, such mixture so used shall be considered to be from a batch that has not been certified in accordance with these regulations.

(g) If coal-tar color from a batch which was certified for use in drugs and cosmetics only is used in coloring a food, such color so used shall be considered to be from a batch that has not been certified in accordance with these regulations.

(h) If a coal-tar color from a batch which was certified for use only in externally applied drugs and cosmetics is used in food or in other drugs or other cosmetics, such color so used shall be considered to be from a batch that has not been certified in accordance with these regulations.

SEC. 35.08 *Labeling.* (a) The label on each package of coal-tar color from a batch that has been certified in accordance with these regulations shall bear, in addition to other words, statements, and information required by or under authority of the Act to appear on such label,—

(1) the name of such color;

(2) the lot number of such batch;

(3) the percentage of pure dye in such color; and,

(4) in case such batch was certified for use only in drugs and cosmetics, the statement *"Not for use in coloring food";* or in case such batch was certified for use only in externally applied drugs and cosmetics, the statement *"Not for use in coloring food, or in coloring any drug or cosmetic used on the lips or any mucous membrane";* or in case such batch is a mixture containing a diluent permitted by clause (3) of section 35.03 (a) only because such diluent does not become a component of a food colored by such mixture, the statement *"Not for use in coloring any food except* _____" (the blank to be filled in by the name of such food).

(b) The statement of the percentage of pure dye in a coal-tar color shall express the minimum percentage by weight. No variation below the stated minimum shall be permitted; variations above shall not be unreasonably large, but shall allow for unavoidable absorption of moisture by such color caused by ordinary and customary exposure that occurs in good storage, packing, and distribution practice.

(c) The name by which a straight color is designated on its label shall be the name by which such color is listed in section 35.02.

(d) No batch of a mixture shall be certified under these regulations if—

(1) the name of such mixture is false or misleading in any particular; or

(2) the name of such mixture is the same as or simulates the name of a previously certified batch of a mixture containing a different substance, or a different percentage of a pure dye; but this provision shall not apply if the person who requests certification of such batch is the owner of such name and has given three months' written notice to the Food and Drug Administration specifying the change to be made in the composition of such mixture.

SEC. 35.09 *Records of distribution.* (a) The person to whom a certificate is issued shall keep complete records showing the disposal of all the coal-tar color from the batch covered by such certificate. Upon the request of any officer or employee of the Food and Drug Administration, or of any other officer or employee of the United States acting on behalf of the Secretary, such person, at all reasonable hours until at least one year after disposal of all such color, shall make such records available to any such officer or employee, and shall accord to such officer or employee full opportunity to make inventory of stocks of such color on hand and otherwise to check the correctness of such records.

(b) The records required to be kept by paragraph (a) of this section shall show—

(1) each quantity used by such person from such batch and the date and kind of such use;

(2) the date and quantity of each shipment or delivery from such batch, and the name and post office address of the person to whom such shipment or delivery was made.

SEC. 35.10 *Authority to refuse certification service.* When it appears to the Secretary that a person has—

(1) obtained a certificate through fraud or misrepresentation of a material fact;

(2) falsified the records required to be kept by section 35.09; or

(3) failed to keep such records, or to make them available, or to accord full opportunity to make inventory of stocks on hand or otherwise to check the correctness of such records, as required by such section,

the Secretary may immediately suspend service to such person under these regulations, and may continue such suspension unless and until such person shows adequate cause why such suspension should be terminated.

SEC. 35.11 *Procedure for admitting colors to listing.* (a) An application for the admission of a coal-tar color to listing in section 35.02 shall be accompanied by—

(1) full reports of investigations which are adequate to show whether or not such color is harmless and suitable for use in food, drugs, and cosmetics, or in drugs and cosmetics, or in externally applied drugs and cosmetics, as the case may be;

(2) a full statement of the percentages and compositions of the pure dye and all intermediates and other impurities contained in such color;

(3) a full statement showing the identity, purity, and quantity or proportion of each intermediate and other article used as a component of such color, and all steps in the process used for the manufacture of such color;

(4) a full description of practical and accurate methods of analysis for the quantitative determination of the pure dye and of all intermediates and other impurities contained in such color;

(5) a full description of practical and accurate methods for the identification of such dye in food, drugs, and cosmetics colored therewith, or in drugs and cosmetics colored therewith;

(6) a five-pound sample of such color (unless the Food and Drug Administration authorizes or requires submission of other quantity suitable to the need for investigation) taken from a batch produced under practical manufacturing conditions, and accurately representative of such batch; and

(7) the advance deposit prescribed by section 35.12 (b) (2).

(b) If the Secretary determines, after such investigation as he considers to be necessary, that—

(1) such color is harmless and suitable for use in food, drugs, and cosmetics, or in drugs and cosmetics, or in externally applied drugs and cosmetics;

(2) practical and accurate methods of analysis exist for the quantitative determination of the pure dye and all intermediates and other impurities contained in such color; and

(3) practical and accurate methods exist for the identification of such dye in food, drugs, and cosmetics colored therewith, or in drugs and cosmetics colored therewith,

the Secretary, for the purpose of listing such color in section 35.02, shall proceed with a proposed amendment to these regulations as prescribed by section 701 (e) of the Act.

(c) If the Secretary, after such investigation as he considers to be necessary, determines that such color does not comply with the requirements laid down by paragraph (b) of this section with respect to procedure for the purpose of listing such color in section 35.02, the Secretary shall give notice thereof to the applicant, stating the respects in which such color does not so comply.

SEC. 35.12. *Fees.* (a) (1) The fee for the service provided by these regulations, in the case of each request for certification submitted in accordance with section 35.05 (b), shall be $15.

(2) The fee for the service provided by these regulations, in the case of each request for certification submitted in accordance with section 35.05 (c) or (d), shall be $8.

(b) (1) The fee for the service provided by these regulations, in the case of each application for the admission of a coal-tar color to listing in section 35.02, shall be the cost incurred by the Department in making the investigations contemplated by section 35.11 (b) and (c).

(2) Such application shall be accompanied by an advance deposit of $500 to cover such fee, and thereafter advance deposits of the same amount (unless the Food and Drug Administration authorizes deposit in other amount) shall be made whenever necessary to prevent arrears in the payment of such fee. Any excess advance deposit so made shall be

returned to the applicant after the close of such investigation;

(c) All fees required by these regulations should be paid by money-order, bank draft or certified check, drawn to the order of the Treasurer of the United States, collectible at par, at Washington, D. C.

(d) All earned fees shall be deposited in the Treasury of the United States to the credit of Miscellaneous Receipts, Department of Agriculture.

[F. R. Doc. 39–75; Filed, January 5, 1939; 12:22 p. m.]

DEPARTMENT OF LABOR.

Wage and Hour Division.

IN THE MATTER OF APPLICATIONS OF NORTHEASTERN LUMBER MANUFACTURERS ASSOCIATION, TIMBER PRODUCERS ASSOCIATION OF MINNESOTA AND SUNDRY OTHER PARTIES FOR EXEMPTION OF THE LUMBER INDUSTRY AS A SEASONAL INDUSTRY

NOTICE OF HEARING

Whereas, application has been made by the Northeastern Lumber Manufacturers Association, Timber Producers Association of Minnesota and sundry other parties (representative of the lumber industry in the East, Middle West and South) under Section 7 (b) (3) of the Fair Labor Standards Act of 1938, 52 Stat. 1060, and Regulations—Part 526, as amended (Regulations applicable to Industries of a Seasonal Nature)[1]—issued by the Administrator thereunder, for partial exemption of the lumber industry from the maximum hours provisions of Section 7 (a) of said Act pursuant to Section 7 (b) (3) applicable to industries found by the Administrator to be of a seasonal nature:

Now, therefore, notice is hereby given of a public hearing to be held pursuant to Section 526.5 (b) and Section 526.6 of said regulations on said application at the Willard Hotel, 14th Street and Pennsylvania Avenue, Washington, D. C., to commence at 10:00 A. M. on January 16, 1939, before an authorized representative of the Administrator to be designated hereafter, to take testimony for the purpose of determining:

Whether or not the lumber industry as defined herein or any branch thereof is of a seasonal nature within the meaning of Section 7 (b) (3) of the Fair Labor Standards Act of 1938 and Part 526 of regulations issued thereunder.

At this hearing all persons interested, including employees, employee groups, employee labor organizations, employers, employer groups, and trade associations, within the industry affected, and designated subordinates of the Administrator, will be afforded an opportunity to present evidence and to be heard. All persons or associations desiring to avail themselves of this opportunity should, if possible, notify the Administrator in advance.

An authorized representative of the Administrator will conduct the said hearing and will make a finding pursuant to Section 526.6 (e) of the said regulations upon the record made at the hearing. For the purposes of this hearing such authorized representative shall have all the powers conferred upon the Administrator by Section 9 of said Act (relating to the attendance of witnesses and the production of books, papers and documents).

As used in this notice the term "lumber industry" means the cutting, sawing, hauling and stacking of logs.

Signed at Washington, D. C., this 6th day of January, 1939.

ELMER F. ANDREWS,
Administrator.

[F. R. Doc. 39–86; Filed, January 6, 1939; 12:44 p. m.]

[1] 3 F. R. 3127 DI.

FEDERAL TRADE COMMISSION.

United States of America—Before Federal Trade Commission

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 29th day of December 1938.

Commissioners: Garland S. Ferguson, Chairman; Charles H. March, Ewin L. Davis, William A. Ayres, Robert E. Freer.

[Docket No. 3466]

IN THE MATTER OF ADOLPH KASTOR & BROTHERS, INC.

ORDER APPOINTING EXAMINER AND FIXING TIME AND PLACE FOR TAKING TESTIMONY

This matter being at issue and ready for the taking of testimony, and pursuant to authority vested in the Federal Trade Commission, under an Act of Congress (38 Stat. 717; 15 U. S. C. A., Section 41),

It is ordered, That John W. Addison, an examiner of this Commission, be and he hereby is designated and appointed to take testimony and receive evidence in this proceeding and to perform all other duties authorized by law;

It is further ordered, That the taking of testimony in this proceeding begin on Wednesday, January 11, 1939, at ten o'clock in the forenoon of that day (eastern standard time), in room 500, 45 Broadway, New York.

Upon completion of testimony for the Federal Trade Commission, the examiner is directed to proceed immediately to take testimony and evidence on behalf of the respondent. The examiner will then close the case and make his report upon the evidence.

By the Commission.

[SEAL] OTIS B. JOHNSON,
Secretary.

[F. R. Doc. 39–79; Filed, January 6, 1939; 10:13 a. m.]

SECURITIES AND EXCHANGE COMMISSION.

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C. on the 4th day of January 1939.

[File No. 1–1345]

IN THE MATTER OF NEW ENGLAND RAILROAD CO. CONSOLIDATED MORTGAGE 5% GOLD BONDS, DUE JULY 1, 1945

ORDER GRANTING APPLICATION TO STRIKE FROM LISTING AND REGISTRATION

The Boston Stock Exchange pursuant to Section 12 (d) of the Securities Exchange Act of 1934, as amended, and Rule X–12D2–1 (b) promulgated thereunder, having made application to strike from listing and registration the Consolidated Mortgage 5% Gold Bonds, due July 1, 1945, of New England Railroad Company; and

After appropriate notice,[1] a hearing having been held in this matter; and

The Commission having considered said application together with the evidence introduced at said hearing, and having due regard for the public interest and the protection of investors;

It is ordered, That said application be and the same is hereby granted, effective at the close of the trading session on January 14, 1939.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 39–82; Filed, January 6, 1939; 10:47 a. m.]

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C. on the 4th day of January 1939.

[File No. 1–2416]

IN THE MATTER OF PROVINCE OF BUENOS AIRES (ARGENTINE REPUBLIC) 6½% EXTERNAL SINKING FUND GOLD BONDS (STAMPED AS ASSENTING TO THE LOAN READJUSTMENT PLAN OF 1933)

ORDER GRANTING APPLICATION TO STRIKE FROM LISTING AND REGISTRATION

The New York Stock Exchange pursuant to Section 12 (d) of the Securities Exchange Act of 1934, as amended, and Rule X–12D2–1 (b) promulgated thereunder, having made application to strike from listing and registration the 6½% External Sinking Fund Gold Bonds of 1930, due August 1, 1961, (Stamped as assenting to the Loan Readjustment Plan of 1933) of Province of Buenos Aires (Argentine Republic); and

[1] 3 F. R. 2612 DI.

After appropriate notice,[1] a hearing having been held in this matter; and

The Commission having considered said application together with the evidence introduced at said hearing, and having due regard for the public interest and the protection of investors;

It is ordered, That said application be and the same is hereby granted, effective at the close of the trading session on January 14, 1939.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 39–81; Filed, January 6, 1939; 10:47 a. m.]

[1] 3 F. R. 2749 DI.

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission, held at its office in the City of Washington, D. C., on the 5th day of January, A. D. 1939.

[File Nos. 7–214, 7–217]

IN THE MATTER OF BOEING AIRPLANE COMPANY CAPITAL STOCK, $5 PAR VALUE, AND UNITED AIRCRAFT CORPORATION CAPITAL STOCK, $5 PAR VALUE

ORDER GRANTING APPLICATIONS TO EXTEND UNLISTED TRADING PRIVILEGES

The Philadelphia Stock Exchange having made application to the Commission, pursuant to Section 12 (f) (2) of the Securities Exchange Act of 1934, as amended, and Rule X–12F–1 (then designated as Rule JF1), for the extension of unlisted trading privileges to the above-mentioned securities; and

A hearing having been held in this matter after appropriate notice,[1] and the Commission having this day made and filed its findings and opinion herein;

[1] 3 F. R. 585, 586 (679, 680 DI).

It is ordered, That the applications of the Philadelphia Stock Exchange, pursuant to Section 12 (f) (2) of the Securities Exchange Act of 1934, as amended, for the extension of unlisted trading privileges to the Capital Stock, $5 Par Value, of Boeing Airplane Company, and the Capital Stock, $5 Par Value, of United Aircraft Corporation, be and the same are hereby granted on the condition that the Philadelphia Stock Exchange make effective such modifications as we may request or approve from time to time with respect to its rules for round lot trading in securities, the primary market for which is on another exchange.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 39–80; Filed, January 6, 1939; 10:47 a. m.]